BRENDAN NGEHSI NEWANFORBI
CDC No. BF3571
1455 Cat Tail Drive
Stockton, CA 95204
Petitioner, In Propria Persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SANTA CLARA

In re:	)	Case No.: _____
BRENDAN NGEHSI NEWANFORBI,	)	
CDC No. BF3571,	)	**PETITION FOR WRIT**
Petitioner,	)	**OF HABEAS CORPUS**
v.	)	(Cal. Penal Code § 1473 et seq.)
KEELY DODD CDCR, in her individual	)	
capacity;	)	**IMMEDIATE DISCHARGE**
JEFF MACOMBER, Secretary, CDCR;	)	**FROM PAROLE REQUESTED**
Respondents.	)	

TO THE HONORABLE SUPERIOR COURT OF SANTA CLARA COUNTY: Petitioner Brendan Ngehsi Newanforbi, proceeding in propria persona, respectfully petitions this Court for a Writ of Habeas Corpus pursuant to California Penal Code section 1473, challenging his unlawful continued restraint under parole supervision by the California Department of Corrections and Rehabilitation ("CDCR").

Petitioner seeks immediate discharge from parole supervision because the denial of discharge in the December 1, 2025 Discharge Review Report constitutes an arbitrary, policy-driven extension of custody that: (1) exceeds CDCR's statutory authority; (2) violates

CDCR's own binding regulations adopted in April 2025; (3) lacks any individualized public safety justification required by law; (4) was rendered using an unauthorized, obsolete review instrument; and (5) violates substantive and procedural due process under the California and United States Constitutions.

This petition is supported by the attached exhibits, relevant statutory provisions, controlling case law, and the newly adopted regulations at Title 15, California Code of Regulations, section 3574 (effective April 17, 2025).

Petitioner demonstrates that continued supervision beyond five years is unlawful absent clear, individualized evidence of high public safety risk—evidence that is conspicuously absent given his California Static Risk Assessment ("CSRA") score of 2 (low risk), his Level of Service/Case Management Inventory ("LS/CMI") score of 5 (drastically below the regulatory retention threshold of 11), stable family residence, complete absence of parole revocations or new criminal offenses over five years, and the Department's own determination that his only infractions warranted nothing more than verbal reprimands.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction pursuant to California Penal Code section 1473(a), which authorizes habeas corpus relief for any person "unlawfully imprisoned or restrained of his or her liberty." Parole constitutes a form of custody and restraint subject to habeas challenge. (In re Sturm (1974) 11 Cal.3d 258, 265; In re Marzec (1945) 25 Cal.2d 794, 796.)

2. Venue is proper in Santa Clara County because Petitioner's underlying conviction and commitment order originated from Santa Clara County Superior Court. (Cal. Rules of Court, rule 4.552(a).) This Court retains continuing jurisdiction over challenges to the execution of the sentence imposed by this County.

II. PARTIES

3. Petitioner Brendan Ngehsi Newanforbi is a 29-year-old resident of Stockton, California, currently under active parole supervision by CDCR's Division of Adult Parole Operations ("DAPO"). His CDC Number is BF3571. Petitioner was released to parole on December 2, 2020, following a six-year prison term for violations of Penal Code sections 289(a)(1)(A) and 220(a)(1). As of the filing of this petition, Petitioner has served over five years on parole without a single revocation, without a single new criminal offense, and without a single arrest.

4. Respondent Keely Dodd CDCR, in her individual capacity, who approved the December 2025 denial of discharge. Respondent Jeff Macomber is the Secretary of CDCR, responsible for parole policies and the lawful implementation of parole supervision throughout California.

III. PRIOR HABEAS PETITION — DISTINGUISHED

5. In compliance with California Rules of Court, rule 4.552, Petitioner discloses that he filed a prior petition for writ of habeas corpus in this Court in April/May 2025, which was denied by Judge Geffon on August 27, 2025. That prior petition raised an entirely different legal issue: whether Petitioner's parole term should be three years (as stated in the Abstract of Judgment) rather than ten years under statute.

6. This petition raises completely different claims. Petitioner does not challenge the ten-year statutory maximum. Instead, Petitioner challenges: (a) CDCR's internal Policy 19-03, which unlawfully converts the 6.5-year "presumptive discharge date" into a mandatory minimum; (b) CDCR's failure to comply with its own newly adopted regulations at 15 CCR § 3574, including the use of an unauthorized review form; (c) the absence of any individualized finding of current dangerousness; (d) the denial of procedural due process; and (e) the weaponization of state-induced unemployment as a pretext for retention.

7. These claims are not barred by the successive petition doctrine because they: (1) involve different legal theories; (2) challenge a new administrative decision (the December 2025 discharge denial) that did not exist when the prior petition was filed; (3) rely on new regulatory

authority (15 CCR § 3574, effective April 17, 2025) that was not in effect when the prior petition was filed; and (4) seek different relief. (See In re Clark (1993) 5 Cal.4th 750, 767–774.)

IV. STATEMENT OF FACTS

A. Conviction and Parole Release

8. On or about January 18, 2018, Petitioner was convicted in Santa Clara County Superior Court and sentenced to six years in state prison. Because these offenses require registration under Penal Code section 290, Petitioner became subject to a maximum parole term of ten years under Penal Code section 3000(b)(2)(B). He was released to parole on December 2, 2020, with a controlling discharge date of December 2, 2030.

B. Exemplary Parole Performance Over Five Years

9. During more than five years on parole, Petitioner has demonstrated substantial rehabilitation and compliance:

- Zero parole revocations throughout the entire five-year supervision period;
- Zero new criminal offenses or arrests;
- CSRA Score of 2 (low risk), indicating below-average recidivism risk;
- LS/CMI Score of 5 ("Level 2 Below Average Risk")—drastically below the regulatory retention threshold of 11 established by 15 CCR § 3574(f)(1);
- Stable residence with family in Stockton, California, for eight months or longer;
- Active participation in sex offender treatment, currently in Core Phase (Block 1, Module 4 of 7) with the HOPE provider, despite approximately seven clinician changes and admitted loss of completed homework by provider staff;
- Presented homework on Victim Empathy demonstrating full acceptance of responsibility for offense;
- Developed a comprehensive relapse prevention plan addressing substance use;

• No gang affiliation; full compliance with financial obligations; no restitution owed;

• Affiliation with pro-social individuals and family support network.

10. The Discharge Review Report itself acknowledges Petitioner's "stable residence with his family," his treatment progress, his development of a "relapse prevention plan," and his focus on "problem solving and relationship stability." The Unit Supervisor's own comments concede that Petitioner "should be commended for maintaining compliance with parole supervision" and has "no restitution obligations." Despite these favorable findings, the Department denied discharge based on categorical policy bars.

C. Technical Violations Were Minor and Resolved Without Custody

11. Petitioner's only parole incidents were minor technical violations during the 2025 review period, all of which were resolved with verbal reprimands or referrals to the PACT program—none resulted in custody, revocation proceedings, or any return to incarceration:

• 2025-03-04: Failure to attend sex offender treatment (Verbal Reprimand);

• 2025-06-26: Failure to attend sex offender treatment (PACT Referral, Verbal Reprimand);

• 2025-07-15: Failure to charge GPS device for one full hour (COP Verbal Reprimand);

• 2025-08-18: Failure to properly charge GPS device (PACT Referral, Verbal Reprimand).

12. These minor administrative infractions bear no rational connection to public safety risk or likelihood of sexual reoffending. CDCR's own agents determined these violations warranted only verbal counseling. Moreover, the missed treatment sessions correlate directly with schedule conflicts arising from Petitioner's efforts to maintain lawful employment—efforts the Department's own policies obstructed, as detailed below.

D. State-Induced Unemployment: Economic Sabotage as Pretext

13. Petitioner is a credentialed commercial truck driver holding a valid California Commercial Driver's License (CDL). Federal W-2 wage statements confirm that between 2022 and 2024, Petitioner maintained active employment with at least six commercial carriers. His earning capacity as an unrestricted CDL holder is conservatively estimated at $72,000 per year. However, CDCR's parole conditions—continuous GPS monitoring, curfew restrictions, geographic movement limitations, and inflexible treatment scheduling—systematically undermined this career, suppressing his actual earnings to $39,553 (2022), $11,145 (2023), and $55,894 (2024).

14. In March 2025, Petitioner secured a formal offer of employment from FedEx Office as a Retail Customer Service Associate at $20.00 per hour. The position required corporate training in Modesto, California, which conflicted with mandatory HOPE Program sessions. Petitioner requested a temporary scheduling accommodation. Parole Agent A. Derrick and HOPE Program Director Katie Palacios jointly denied the request, labeling it "excessive." Faced with the explicit threat of incarceration for missing a treatment session, Petitioner was coerced into resigning from FedEx Office on approximately April 17, 2025.

15. Having systematically dismantled Petitioner's commercial trucking career and forced his resignation from FedEx, the Department then cited his resulting "unemployment" as the primary aggravating factor to deny his parole discharge. The November 2025 Report rated Petitioner's employment status a "3" (the most severe negative rating), stating his time was "unstructured and generally unaccounted for." Unemployment is not a statutory basis for parole retention under Penal Code section 3001, nor does it possess any established connection to sexual reoffense risk. This circular reasoning—destroying employment and then punishing the resulting joblessness—is the definition of arbitrary and capricious state action.

E. The December 2025 Discharge Denial

16. On December 1, 2025, CDCR conducted a discharge review. Parole Agent Long Moua recommended "Retain on Parole." Unit Supervisor Gary Noguchi and Parole Administrator Keely Dodd concurred. The stated reasons for denial were:

- The Time-Served Bar (Policy 19-03): The report stated: "Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision."
- The "Incomplete Treatment" Bar: The report cited that Petitioner "is not currently titrated and is not in the maintenance phase of his treatment with HOPE"—a standard that, as demonstrated below, renders completion structurally impossible before discharge.
- Technical violations during the review period;
- Unemployment—a status manufactured by the Department's own interference.

17. Critically, the denial contains no individualized finding that Petitioner currently poses a danger to public safety. Despite Petitioner's validated low-risk scores (CSRA 2, LS/CMI 5), five years without revocation, and stable community ties, the denial mechanically applied categorical policy benchmarks.

F. Procedural Deficiencies: Use of Unauthorized Review Form

18. Effective April 17, 2025, CDCR adopted 15 Cal. Code Regs. § 3574, which mandates that any determination to retain a supervised person in treatment "shall be stated in writing, signed by the sex offender treatment provider and parole agent on the CDCR Form 3043 Containment Team Meeting / Earned Discharge Consideration Committee." (§ 3574(f).) Despite this binding regulatory requirement, CDCR conducted Petitioner's discharge review using the obsolete CDCR Form 1502-DR—a form that was legally superseded eight months before the review.

19. The use of the wrong form is not a harmless procedural error. The mandated Form

3043 requires objective, actuarially validated risk assessment metrics, including specific numerical thresholds for retention. The obsolete 1502-DR relies on subjective, narrative-driven "Dynamic Profile" criteria that grant parole agents vast discretionary latitude to manufacture negative findings. By using the unauthorized form, CDCR bypassed the objective thresholds that would have demonstrated Petitioner's ineligibility for retention:

Assessment Tool	Petitioner's Score	§ 3574(f) Retention Threshold
CSRA	2 (Low Risk)	N/A (general baseline)
LS/CMI	5 (Below Average)	11 or higher
Stable-2007	6 (Moderate)	4 or higher

20. Petitioner's LS/CMI score of 5 falls less than half the regulatory threshold of 11 required for retention. The CDCR is mathematically and legally precluded from utilizing his violence risk profile to justify continued supervision. The Department's deliberate use of the wrong form allowed it to circumvent these objective thresholds and substitute subjective narrative assessments tainted by retaliatory animus.

V. LEGAL ARGUMENT

A. CDCR's Policy 19-03 Exceeds Statutory Authority

21. Penal Code section 3008(d)(2) establishes the framework for sex offender management programs on parole. Its text is unambiguous: "The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court." (Emphasis added.)

22. The Legislature's inclusion of the phrase "up to" is not ornamental. It creates a discretionary range that explicitly contemplates that for some parolees, the appropriate treatment duration will be less than the entire parole period. If the Legislature had intended to mandate that

all sex offenders remain in the program for their full parole term, it would have enacted language to that effect. CDCR's Policy 19-03 renders the words "up to" complete surplusage, violating the cardinal rule of statutory construction. (People v. Rizo (2000) 22 Cal.4th 681, 685; Lungren v. Deukmejian (1988) 45 Cal.3d 727, 735.)

23. In In re Gadlin (2020) 10 Cal.5th 915, the California Supreme Court unanimously held that CDCR "is not permitted... to entirely exclude from parole consideration an entire class of inmates" when they are otherwise eligible under statute. (Id. at p. 934.) The Court invalidated categorical exclusions, holding that "policy considerations... do not trump the plain text" of enabling statutes. (Ibid.) Policy 19-03's 10-year/6.5-year rule is precisely the type of "wholesale exclusion" condemned in Gadlin—it prejudges every parolee with a 10-year term as ineligible for discharge until a fixed date, regardless of individual circumstances.

24. This principle was reaffirmed in In re Leman (2021) 66 Cal.App.5th 200, where the court held that CDCR's reliance on a "one-size-fits-all" policy, rather than individualized consideration of current risk to public safety, constitutes an abuse of discretion. (Id. at p. 215.)

B. CDCR's "Completion Impossible" Policy Violates § 3008(d)(2) and 15 CCR § 3574

25. The "incomplete treatment" basis for denial is not a reflection of Petitioner's clinical status alone. It is the product of a structural policy that renders pre-discharge completion impossible by design. In In re Dwyer (San Mateo Super. Ct. Case No. SC-080355A/HC-3020, Order dated Mar. 20, 2023), CDCR officials testified under oath that CDCR policy prohibits completion of sex offender management programs prior to discharge from parole. The court found that this practice "vitiates the Legislature's directive" in section 3008(d). Petitioner's treatment provider, HOPE, was the subject of that very testimony.

26. CDCR's own regulations now repudiate this policy. Effective April 17, 2025, 15 CCR § 3574(d) states: "Supervised persons may complete a sex offender management program before discharge from parole, as contemplated by PC section 3008(d)." This is a direct and formal repudiation of the "completion impossible" stance. The Department cannot promulgate a

regulation in April 2025 explicitly permitting early completion and then deny a parolee in December 2025 on the ground that completion is impossible.

27. Section 3574(e) further provides: "The Containment Team's review of program completion is solely to determine the length of a supervised person's participation and progress in sex offender treatment. This review is independent of whether the supervised person should be discharged from parole." The December 2025 report directly violated this provision by conditioning discharge on treatment completion.

C. Policy 19-03 Is an Invalid "Underground Regulation"

28. The APA defines a "regulation" as every rule of general application adopted by a state agency. (Gov. Code § 11342.600.) Regulations not adopted through formal notice-and-comment are "underground regulations"—and void. (Tidewater Marine Western, Inc. v. Bradshaw (1996) 14 Cal.4th 557, 571.) Policy 19-03 applies generally to all parolees with 10-year terms, imposes a concrete minimum duration (6.5 years) not found in statute, and was never adopted through the APA process. It is an illegal underground regulation.

D. The Denial Violates Substantive Due Process

29. In In re Lawrence (2008) 44 Cal.4th 1181, the California Supreme Court established that parole decisions affecting liberty must be based on "some evidence" of current dangerousness—not merely historical factors or rote policy application. (Id. at p. 1211.) The Court mandated a "rational nexus" between the evidence relied upon and the ultimate decision. In re Taylor (2015) 60 Cal.4th 1019 extended these principles, holding that blanket restrictions must be "based on, and supported by, the particularized circumstances of each individual parolee." (Id. at p. 1040.)

30. None of the grounds cited in the denial satisfies these requirements:

- Time Served: Purely categorical under Policy 19-03. No individualized

assessment whatsoever.

• Treatment Phase: Violates 15 CCR § 3574(e), which explicitly decouples treatment status from discharge eligibility. Moreover, Petitioner's treatment progress has been systematically disrupted by approximately seven clinician changes in five years and the provider's admitted loss of completed homework—failures attributable to the Department and its contractor, not Petitioner.

• Technical Violations: All resolved with verbal reprimands. CDCR's own agents determined they did not warrant revocation. These minor administrative compliance failures bear no rational nexus to sexual recidivism risk.

• Unemployment: Not a statutory basis for retention. State-manufactured through the Department's deliberate destruction of Petitioner's employment opportunities.

31. Meanwhile, the denial ignores the most powerful evidence available: Petitioner's validated LS/CMI score of 5 (classified by CDCR's own supervisory review as "Level 2 Below Average Risk") falls less than half the retention threshold of 11 established by 15 CCR § 3574(f)(1). Five consecutive years without revocation, arrest, or new offense directly undermines any claim of "current dangerousness." Under Lawrence, ignoring this evidence while mechanically applying policy benchmarks is arbitrary and capricious.

E. The Denial Violates Procedural Due Process

32. Parolees possess a protected liberty interest in discharge from supervision. (Cal. Const., art. I, § 7; U.S. Const., 14th Amend.; Morrissey v. Brewer (1972) 408 U.S. 471, 482; Board of Pardons v. Allen (1987) 482 U.S. 369, 377–378.) The December 2025 discharge review provided no meaningful procedural protections:

• Petitioner received no notice that extended supervision would be recommended;

• He was afforded no opportunity to be heard, present evidence of rehabilitation, or contest the factors cited against him;

• No neutral decision-maker was involved;

• CDCR used the obsolete Form 1502-DR instead of the mandated Form 3043, bypassing every procedural safeguard of 15 CCR § 3574;

• No Containment Team Meeting was conducted as required by § 3574(c);

• No written "good cause" finding was documented on Form 3043 as required by § 3574(f);

• No treatment provider signature was obtained;

• No 30-day written notice was delivered to Petitioner.

33. Under the Accardi doctrine (United States ex rel. Accardi v. Shaughnessy (1954) 347 U.S. 260), a government agency must strictly adhere to its own promulgated rules. When an agency fails to follow its own mandated procedures in a context affecting fundamental liberty interests, the resulting administrative action is procedurally defective and legally void.

F. The Decision Is "Tainted" and Must Be Vacated

34. When an administrative decision rests on multiple grounds and at least one is improper, the decision must be set aside. (California Highway Patrol v. Superior Court (2008) 158 Cal.App.4th 726, 735.) Here, at least two grounds are demonstrably improper: the 6.5-year time bar (ultra vires under Tidewater) and the incomplete treatment standard (repudiated by § 3574(d)). The Report's use of the term "not eligible" reveals a threshold eligibility determination made before any holistic review of Petitioner's individual circumstances. This foundational reliance on unlawful criteria requires vacatur without speculation about what the agency might have done otherwise. (JKH Enterprises, Inc. v. Dept. of Industrial Relations (2006) 142 Cal.App.4th 1046, 1058; Topanga Ass'n for a Scenic Community v. County of Los Angeles (1974) 11 Cal.3d 506, 514–15.)

G. Continued Supervision Serves No Legitimate Public Safety Purpose

35. The touchstone of parole supervision is public safety. As the Legislature declared:

"[T]he period immediately following incarceration is critical to successful reintegration of the offender into society and to positive citizenship." (Pen. Code § 3000(a)(1).) Continued supervision of an individual who poses no demonstrated risk serves no legitimate governmental purpose and becomes punitive rather than protective. Under United States v. Knights (2001) 534 U.S. 112, 119–121, parole conditions must be rationally related to the goals of supervision. Extending supervision for years based on categorical policy requirements, without any evidence of risk, exceeds rational relationship and constitutes arbitrary detention.

36. Petitioner's parole performance mirrors that of Frederick Dwyer, for whom the San Mateo Superior Court exercised its authority under § 3008(d)(2) to terminate sex offender treatment and disapprove further program participation. In that case, as here, the court found that continued program engagement "does not serve to 'assist [Petitioner] in the transition between imprisonment and discharge,' since his parole agent and that agent's supervisors have apparently determined that he is ready for a recommended earned discharge."

VI. EXHAUSTION OF ADMINISTRATIVE REMEDIES

37. Exhaustion is excused under three independently sufficient doctrines:

• Futility: The denial reflects fixed statewide policies, not case-specific discretion. In In re Dwyer, CDCR officials testified under oath that these policies are absolute. (In re Thompson (1985) 172 Cal.App.3d 256, 262.)

• Pure Question of Law: Whether CDCR's categorical policies comply with § 3008(d)(2) and § 3574 requires statutory interpretation, not administrative fact-finding. (Coachella Valley Mosquito & Vector Control Dist. v. Cal. PERB (2005) 35 Cal.4th 1072, 1080.)

• Inadequacy: The Form 602 grievance process cannot invalidate a regulation, declare a policy ultra vires, or compel the Department to disregard agency-wide directives. (Horn v. County of Ventura (1979) 24 Cal.3d 605, 611.)

38. Furthermore, Petitioner presented a Government Tort Claim on February 10, 2026,

fulfilling presentment requirements regarding the damages stemming from this unlawful restraint.

VII. PRAYER FOR RELIEF

WHEREFORE, Petitioner Brendan Ngehsi Newanforbi respectfully prays that this Court:

1. Issue an Order to Show Cause directing Respondents to demonstrate why the writ should not be granted and why Petitioner should not be immediately discharged from parole supervision;

2. Grant the Writ of Habeas Corpus and order Petitioner's immediate discharge from parole, effective as of December 2, 2025 (the date Petitioner's five-year supervision period concluded), or as of the date of this Court's order;

3. Declare that CDCR Policy 19-03 (Amended), to the extent it creates mandatory minimum supervision periods that exceed statutory authority, is an invalid "underground regulation" adopted in violation of the Administrative Procedure Act and is ultra vires to Penal Code section 3008(d);

4. Declare that CDCR's use of the obsolete Form 1502-DR in place of the mandated Form 3043 constitutes a procedural violation of 15 CCR § 3574(f) that renders the December 2025 determination void; and

5. Grant such other and further relief as this Court deems just and proper.

EXHIBIT LIST

The following exhibits are attached to this Petition:

Exhibit A: CDCR Discharge Review Report (Form 1502-DR), dated December 1, 2025

Exhibit B: In re Dwyer, San Mateo Super. Ct. Case No. SC-080355A/HC-3020 (Order dated March 20, 2023)

Exhibit C: 15 Cal. Code Regs. § 3574 (Sex Offender Treatment regulations,

effective April 17, 2025), including CDCR Form 3043

Exhibit D: Centerline Wage Reference

Exhibit E: FedEx Office Employment Documentation

Exhibit F: Alliance for Constitutional Sex Offense Laws v. Macomber (Sacramento Super. Ct. Case No. 23STCP02378)

Dated: March 31, 2026

BRENDAN NGEHSI NEWANFORBI

Petitioner, In Propria Persona

EXHIBIT A

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

SECTION I PAROLEE PROFILE Case Type: **PC3000(b)(5)(B)**

CDC Number:	Print Name (Print Last, First, MI):		Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**		**N**	**STOCKTON 2 GPS**
CSRA Score:	Supervision Category:	Discharge Review Date:	Controlling Discharge Date:	
2	**SA**	**12-01-2025**	**12-02-2030**	

Commitment Offenses:
PC289(a)(1)(A)[01] Penetration w/Force/Violence/Fear of Immediate Bodily Injury, PC220(a)(1)[01] Assault with Intent to Commit Specific Sex Offense

Imminent Discharge: [X] | DNA Sample Obtained: [X] YES [ ] NO | Non-Controlling Offenses: [X] YES [ ] NO

Commitment Offense Subject To PC 667.5(C): [X] YES [ ] NO | Commitment Offense Subject To PC1192.7 9 (C) or 1192.8: [X] YES [ ] NO

PC 290 Registrant: [X] YES* [ ] NO * If Yes, Sex Offender Static Risk Assessment: Score: 4

Other Registration Requirements: [ ] PC 457.1 [ ] PC 186.30 [X] NONE

Circumstances of Commitment Offense (Note any weapons used or possessed during the controlling or non-controlling offense):

According to Santa Clara County Probation Officer's Report, Santa Clara Police Department officers responded to a report of sexual assault which occurred at the Santa Clara University. The Victim (V1) stated she left her friend's dormitory at 2000 hours and proceeded to her dormitory. As she was walking, a man later identified as Brendan Newanforbi, approached her from behind, picked her up and carried her approximately five feet. Newanforbi dropped V1 on the ground and inserted his fingers into her vagina. V1 screamed and resisted Newanforbi so Newanforbi fled the scene. V1 was transported to the Valley Medical Center for a SART exam. V1 sustained abrasions to her left knee, left hip area, left wrist and complained of pain to her vagina. Officers reviewed surveillance footage from cameras and showed a figure running, and a grey ford mustang fleeing the scene. On 03/03/2017, Newanforbi was stopped for speeding and taken into custody for matching the description. Newanforbi self- admitted to groping V1 and stated he had uncontrollable urges and needed help.

Prior Criminal History: (Note any history of weapons, serious or violent felonies and any other relevant criminal information):

[X] Criminal History Attached (Dated no more than 30 days prior to due date of DRR)

01/12/18-PC 289(A)(1)(A): SEXUAL PENETRATION W/FORCE/ETC, PC 220(A)(1): ASSAULT:W/INTENT TO RAPE (6 YEARS PRISON)

Special Conditions of Parole: [X] CDCR Form 1515- Addendum Attached (* If necessary.)

[ ] None [ ] Anti-Narcotic Testing [ ] Drug Treatment [X] No Alcohol [ ] Attend POC [X] * Other

Parole Violations: (Note any parole violations, arrests, pending investigations and/or dispositions incurred during this period of review)

2025-03-04 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Verbal Reprimand)
2025-06-26 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Referral to PACT Program, Verbal Reprimand)
2025-07-15 FAILURE TO CHARGE GPS TWICE PER DAY EVERY 12 HOURS FOR 1 FULL HOUR OF CHARGING COP (Verbal Reprimand)
2025-08-18 FAILURE TO PROPERLY CHARGE GPS DEVICE COP (Referral to PACT Program, Verbal Reprimand)

Gang Activity Or Affiliation: (Note any past or present involvement in any prison, criminal, or street gang)

[X] None Validated: [ ] Member [ ] Associate [ ] Affiliate [ ] Dropout [ ] Active [ ] Inactive

Gang:

Current or past activity:

Mental Health Factors (Note mental health status of the parolee and his or her compliance with any mental health treatment):

[ ] None [ ] Voluntary [X] CCCMS [ ] EOP [ ] MDO

If CCCMS/EOP/MDO: [X] Compliant [ ] Non - Compliant

[X] BHR Report Attached (Dated no more than 45 days prior to due date of DRR)

Restitution (Note any fine and/or restitution balance at the time of review, and any effort to satisfy the fine and/or restitution balance):

[X] None [ ] Satisfied [ ] Not Satisfied Amount remitted to date: $ 0 Outstanding balance: $ 0

Employment (Note any employment, educational or vocational training):

Employment [X] None [ ] Employed [ ] Full Time [ ] Part Time

Student: [X] None [ ] Student [ ] Full Time [ ] Part Time

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

Employer Name (If applicable):

Program Name (If applicable):

Position:

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

SECTION II PAROLEE DYNAMIC PROFILE **CATEGORY: SA CSRA: 2**

Objective 1: The parolee has maintained residence stability in a positive living environment.

1=Has been in the same pro-social living situation for eight months or longer; or less than eight months, but at least six months, when the most recent move was to improve overall living conditions, and will continue to be available to the parolee.

Objective 2: The parolee's time has been structured around pro-social activities geared towards self-reliance.

3=Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.

Objective 3: The parolee has been compliant with his or her general and special conditions of parole.

3=The parolee has not met the rating standard for #1 or #2 above.

Objective 4: The parolee was referred and participated in programming for his or her top three criminogenic needs.

3=Failed to attend, participate, or complete.

Objective 5: The parolee has affiliated himself or herself with other pro-social individuals.

2=Parolee is seeking to terminate anti-social relationships, but still maintains some anti-social relationships.

Objective 6: Parolee has been referred to and participated in required sex offender treatment.

2=Attended and partially participated in sex offender treatment.

Parolee Dynamic Profile Recommendation: **Retain On Parole**

Aggravating Factor(s) to Consider:

Supervised Person Brendan Newanforbi is unemployed, incurred multiple parole violations during this review period, and has not completed sex offender treatment.

Mitigating Factor(s) to Consider:

Supervised Person Brendan Newanforbi has stable residence with his family.

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

SECTION III RECOMMENDATION

Parole Agent Recommendation:

☐ Retain on Parole ☒ Discharge Denied/No Action

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

Parole Agent Comments / Recommendation:

Objective 1: Residence - Newanforbi currently has stable residence with his family in Stockton.

Objective 2: Employment - Newanforbi is currently unemployed.

Objective 3: General/Special Conditions - Newanforbi has incurred multiple parole violations during this review period.

Objective 4: Addressed Criminogenic Needs - Newanforbi's Criminogenic Needs for Substance Abuse rated Probable and Unlikely for all other categories.

Objective 5: Pro-Social - Newanforbi does not appear to have a large social circle.

Objective 6: Sex Offender - Newanforbi is not currently titrated and is not in the maintenance phase of his treatment with HOPE.

Supervised Person Brendan Newanforbi is a 29-year-old first termer committed to the California Department of Corrections and Rehabiliation for Penal Code 289(a)(1)(A) Penetration w/Force/Violence/Fear of Immediate Bodily Injury for 6 years in state prison. Newanforbi appears to have stable residence with his family in Stockton, CA. Newanforbi is currently unemployed and not attending school. Newanforbi has incurred multiple parole violations during this review period for failure to attend sex offender treatment and failure to charge Global Positioning System. Newanforbi is currently attending sex offender treatment and has not completed treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision. Continued supervision is both warranted and recommended at this time. Recommend discharge be denied at this time.

Parole Agent (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
LONG MOUA	**LONG MOUA**	**7472**	**11-14-2025**

Unit Supervisor Actions:

☒ Review ☒ Decision ☐ Retain On Parole ☒ Discharge Denied/No Action ☐ Refer to BPH

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

☒ Refer to Parole Administrator

Unit Supervisor Comments/ /Decision /Recommendation:

The subject should be commended for maintaining compliance with parole supervision. The subject is unemployed, and the subject lives with his family in Stockton. The subject has no restitution obligations and, the subject has had five parole violations this period. Subject's Sex Offender Treatment Progress (HOPE): 10/15/2024 Stable 6/LSCMI 5. Level 2 below average Risk. Missed 6 sessions this Parole Period. Core Phase of treatment and working in Block 1 Module 4/7. Subject has presented homework on Victim Empathy. Does take full responsibility of offense. Subject has a relapse prevention plan to assist in his alcohol and marijuana use. Current focus on problem solving and relationship stability focusing on healthy relationships. Not eligible for titration at this time. Currently scheduled for 2 groups a week and 1 monthly individual. HOPE SOT recommends continued treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Subject is not eligible for EDC at this time due to having a 10-year parole term. Eagan has only completed approximately 4 years of the required 6.5 years of supervision. I concur with the Parolee Dynamic Profile and AOR's recommendation "Retain on Parole". Continued DAPO supervision is warranted and recommended.

Unit Supervisor (Printed Name):	Electronically Signed by:	Badge #:	Date Signed:
GARY NOGUCHI	**GARY NOGUCHI**	**7284**	**11-19-2025**

Parole Administrator Actions:

☒ Review ☒ Decision ☐ Retain On Parole ☒ Discharge Denied/No Action ☐ Refer To BPH

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

Parole Administrator Comments / Decision/ Recommendation:

Concur with the Unit Supervisor, continued parole supervision is warranted and recommended at this time.

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

Parole Administrator (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
KEELY DODD	**KEELY DODD**	**6462**	**11-19-2025**

Parolee Provided Copy (Date)

☐ Mailed By (Initials): ☐ Delivered By (Initials):

AGENT OF RECORD CONTACT INFORMATION AS OF 11/19/2025

AGENT NAME: ROJO, JOSEELYN

AGENT CONTACT: JOSEELYN.ROJO@CDCR.CA.GOV, (510) 871-7372 (Cell)

PAROLE UNIT: STOCKTON 2 GPS, 612 CARLTON AVENUE, STOCKTON, CA, 95203, (209) 948-7652

EXHIBIT B

ENDORSED FILED
SAN MATEO COUNTY

MAR 2 0 2023

Clerk of the Superior Court
By VALERIE HRONIS
DEPUTY CLERK

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN MATEO

In re:	Case No. SC-080355A HC-3020
FREDERICK DWYER.	
On Habeas Corpus.	**ORDER**

FACTS AND ALLEGATIONS

On January 23, 2015, Petitioner pled no contest to one count of Penal Code section (PC §) 286(c)(2) (sodomy by force). He also admitted allegations pursuant to Penal Code section 1192.7(c)(4) and 667.5(c)(4) (admitting that the current offense was serious and violent). On March 10, 2015, the Court denied probation and sentenced Petitioner to the lower term of three years in the California Department of Corrections and Rehabilitation. As a condition of sentence, Petitioner was ordered to register pursuant to the terms of Penal Code § 290.

Petitioner was released on parole in 2017. Among other conditions, he was ordered as a special condition of parole to participate in a sex offender management program as required by Penal Code § 3008(d). In the present writ before the court, Petitioner challenges the continued imposition of the special condition of parole on two grounds: 1) that he has already successfully completed a sex offender management program as required, but is currently being ordered to complete a second program; and 2) he asks the court to exercise its discretion pursuant to Penal

Code § 3008(d) to limit the length of the sex offender management treatment program to a term less than the entire term of his parole.

Petitioner submitted his writ petition on June 22, 2021 in Alameda County Superior Court. The People, through the Attorney General, submitted an informal response requesting denial of the petition on August 20, 2021. Petitioner filed a reply on August 27, 2021. The Honorable Morris Jacobson ordered the writ petition transferred to San Mateo County Superior Court on October 22, 2021, finding that venue was more appropriate in the committing court. This Court issued an order to show cause on January 13, 2022. Respondent filed their return on April 14, 2022, and Petitioner filed a Traverse and Denial on May 11, 2022. This Court issued an order for evidentiary hearing on disputed facts on October 20, 2022. The hearing was continued and ultimately heard on March 9, 2023. Petitioner testified on his own behalf. Respondent presented the testimony of Dr. Cristina Loree, Gilberto Haro, and Daniel Stout. The parties stipulated to the admission of each of their marked exhibits. The Court has considered all filed written pleadings, all admitted exhibits, the testimony of each witness, and the arguments of counsel in rendering the following decision.

DISCUSSION

I. Factual Findings

The facts established at the evidentiary hearing in this matter are largely undisputed. Pursuant to the parties' written stipulation filed March 2, 2023, Petitioner was released on parole on May 30, 2017. He has suffered one parole violation to date in September 2019 for a physical altercation with his wife. The altercation did not result in the filing of a new criminal case, and Petitioner's parole violation resulted in a custodial sanction of six days. Petitioner has otherwise complied with his parole conditions, and has been recommended for early discharge from parole. The Board of Parole Hearings denied the recommended early discharge because Petitioner has not yet served the minimum term of parole required for his commitment offense.

Pursuant to a special condition of parole, Petitioner is required to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program.

The program will require you to agree and sign necessary documents and waivers as well as polygraph examinations, limited to questions about the success of the sex offender treatment program, the crime(s) for which you were convicted, compliance with conditions of parole, sexual history and related criminal behavior past, present, and/or future." (Exhibit 3H). At the time of Petitioner's release on parole, the Division of Adult Parole Operations in Petitioner's area of supervision contracted with a program called Shaping Success. Shaping Success is a California Sex Offender Management Board (CASOMB) approved sex offender management program. The evidence at the hearing established that the Shaping Success program consisted of a "treatment" phase and a "maintenance" phase. During the treatment phase, Petitioner testified that he was initially required to participate in weekly group meetings and individual monthly counseling sessions with Shaping Success. He participated in treatment with Shaping Success for three years. On January 12, 2021, the Shaping Success program issued a "Statement of Successful Treatment Completion" regarding Petitioner's treatment. (Exhibit 9H). The certificate stated, in relevant part on its face, that:

> [t]he term 'successful treatment completion' is defined as having 'demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan' at the time of release from treatment. … Treatment completion does not mean that the client has successfully completed the sex offender management program, or that the client will never reoffend. When active treatment ends, supervision and other elements of the Containment Model may continue. These elements may include, but are not limited to, monitoring, follow-up sessions, aftercare meetings, polygraph testing, risk assessments, and other services which may be required as part of a sex offender management program, i.e., CASOMB Sex Offender Treatment Provider Agency Certification Requirements.

At the completion of the "treatment" phase of Shaping Success, Petitioner was moved into the "maintenance" phase of the program. Petitioner testified that in the "maintenance" phase, he was no longer required to attend any group sessions and his individual sessions were reduced to once a month. He was also required to participate in annual polygraph examinations.

After Petitioner had completed the treatment phase of Shaping Success, the Division of Adult Parole Operations contracted with a new CASOMB provider for sex offender

management – the HOPE program. Petitioner was required to participate in treatment at the HOPE program beginning on March 5, 2021. (Exhibit 6H). Dr. Cristina Loree, Executive Director of Clinical Training and Development at the HOPE Program, testified that HOPE's sex offender management program consists of four phases. When participants first report to the program, the program administers static and dynamic risk assessment tools and obtains a full biopsychosocial history of the participant. Clients are referred to treatment based on their risk assessment scores. The first phase of the program is preparatory for treatment, consisting of seven modules. The second phase of the program, referred to as "core treatment", consists of twenty four modules. In the core treatment phase, sex offenders designated as "high risk" based on their risk assessment scores are required to attend groups twice weekly and once a month individually. "Low risk" offenders participate in groups once weekly and individual sessions once a month. The third phase of the program is "maintenance", consisting of twelve modules. In the maintenance phase, participants have group meetings no less frequently than every other week, and individual sessions no less than quarterly. Completion of all twelve modules is required to complete the maintenance phase, and group sessions are the primary method that the program uses to assess completion of the modules. Upon completion of maintenance, the fourth phase of the program is "aftercare". In aftercare, participants have no group sessions, individual meetings only as needed at the discretion of their clinicians, and twice yearly polygraph examinations. Dr. Loree characterized participation in "aftercare" as voluntary for those no longer on parole, but mandatory for those who have not yet discharged from parole based on the need to maintain a connection to treatment. Dr. Loree testified that she believes a continuous connection to treatment is required for all sex offender parolees based on Penal Code § 3008's provision that the duration of a sex offender management program can be up to the entire term of parole.

When HOPE became the sex offender management provider for Petitioner's region, they devised the following general process for participants who were in the maintenance phase of the Shaping Success program. The participants were required to complete the seven module treatment preparation phase, submit a non-deceptive polygraph examination, and undergo a

risk assessment. Upon completion of those three requirements, participants were then moved into the maintenance phase of the HOPE program. Dr. Loree was unable to describe exactly when Petitioner went through that screening process and was moved to maintenance. Petitioner testified that when he first began with HOPE he was required to attend groups twice weekly in addition to individual sessions for the first three months of his participation in the program. After that, Petitioner testified that he was moved to the maintenance phase of the HOPE program – he currently attends groups once every two weeks and individual sessions quarterly. Dr. Loree confirmed that this is the lowest level of treatment available in HOPE's maintenance phase. Dr. Loree testified that Petitioner has completed four of the twelve maintenance phase modules. His attendance has been "near perfect". His STATIC-99R score is 4, which is categorized as high risk. The STATIC-99R measures risk factors that generally do not change over time with the exception of age at last release from prison. HOPE has administered two dynamic risk assessments to Petitioner – the Stable-2007 and the LS/CMI. His most recent Stable-2007 score is 2, and his most recent LS/CMI score is 6. Both are categorized as low risk. (Exhibit 7). Dr. Loree testified that Petitioner's overall risk assessment, taking both the STATIC-99R score and the dynamic risk assessment scores into account, is average risk – classified as an 8% likelihood of sexual recidivism within 5 years as compared to the overall population of individuals convicted of sexually motivated offenses.

Petitioner is married, has stable housing, and is presently employed. He is the sole wage earner in his household. He has reached journeyman level in his carpenter's union. He is enrolled in community college courses in pursuit of his Associate of Arts degree, with the goal of becoming a construction superintendent. Since the 2019 parole violation, his parole performance has been positive. (Exhibit 5H). He asserts that the increased frequency of group meetings since his transition from the Shaping Success program to the HOPE program is interfering with his ability to meet his employment obligations.

II. Legal Discussion

A. Failure to Exhaust Remedies

The Attorney General argues that this Court should deny the writ because Petitioner has failed to exhaust his administrative remedies before seeking writ relief, citing In re Muszalski (1975) 52 Cal.App.3d 500, 508. While it is true that exhaustion is typically required before a writ of habeas corpus may be granted, there is an exception to the requirement of exhaustion where an aggrieved party "can positively state what the administrative agency's decision in his particular case would be." In re Thompson (1985) 172 Cal.App.3d 256, 262. Petitioner is not "required to pursue a futile remedy." In re Thompson, *supra*, at 263.

In the instant petition, Petitioner filed a grievance on June 11, 2021 prior to filing the instant writ petition. The grievance and response were admitted as Exhibits 7H and 8H. Petitioner's grievance sought to be "placed back on maintenance with the same frequency of contact that I had with Shaping Success provider." (Exhibit 7H.) On July 28, 2021, Petitioner's grievance was denied on the grounds that Penal Code § 3008(d)(2) and Petitioner's special condition of parole required him to participate in sex offender treatment "while under parole supervision", and that HOPE's program staff had stated that Petitioner would be moved to HOPE's maintenance phase with once per week group sessions and monthly individual sessions. (Exhibit 8H.) At the hearing, the Court heard the testimony of Gilberto Haro, presently responsible for overseeing the operations of five parole units within the East Bay where Petitioner is supervised. Mr. Haro participated in the review and denial of Petitioner's grievance. He supervises Petitioner's assigned parole agent. Mr. Haro testified unamibiguously that the treatment provider determined Petitioner's appropriate level of treatment and parole denied Petitioner's grievance in deference to that decision. Mr. Haro further testified that he understands Penal Code § 3008(d)(2) to require a sex offender parolee to participate in a sex offender management program for the entire term of parole.

The Attorney General further presented the testimony of Daniel Stout, who previously supervised the East Bay parole region and is currently assigned to the sex offender unit of parole headquarters. Mr. Stout participates in the drafting and editing process for contracts between CASOMB certified sex offender management program providers and the Division of Adult Parole Operations. He testified that it is the policy of the California Department of

Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge from parole. This was consistent with Dr. Loree's testimony of her understanding that Penal Code § 3008(d)(2) requires sex offender parolees to maintain "some connection to treatment" for the entire period of parole until discharge. Dr. Loree testified that Petitioner would be required to complete all twelve modules of maintenance with the HOPE program before moving to aftercare.

Petitioner's grievance sought admission to "maintenance" with the same level of program contact that had been required at Shaping Success – monthly individual check-ins and no group treatment. The testimony at the evidentiary hearing established that the minimum level of supervision required for "maintenance" at HOPE is participation in group meetings every other week and quarterly individual sessions. The testimony of the parole witnesses established that any appeal of Petitioner's grievance denial would be a futile act – the Division of Adult Parole Operations defers to the treatment provider's determination of the frequency of treatment, and HOPE's minimum maintenance treatment requirement exceeds the amount of programming required by the former provider. In this case, Petitioner can positively state what the administrative agency's decision in his particular case would be. The Court finds that he is not required to exhaust remedies under these circumstances.

B. Mootness/Unripe for Review

The Attorney General further contends that the petition is moot or unripe for review because Petitioner has already "received the relief he requested." Respondent's Return to the Order to Show Cause; Supporting Memorandum of Points and Authorities, p. 13, L. 23. It is apparent from the face of both the grievance and the petition for habeas corpus that Petitioner has not received the relief that he requested. Petitioner requested to be "placed back on maintenance *with the same frequency of contact that I had with Shaping Success provider*". (emphasis added by the Court). The evidence at the hearing amply demonstrated that not only has Petitioner **not** been placed in treatment at the same frequency of contact as previously required, but that the structure of the HOPE program makes it impossible for him to be placed

on the same level of contact. He will either be included in the maintenance phase, which requires group meetings every other week that Shaping Success did not require; or he will eventually transition to aftercare, which includes individual check-ins "as directed" rather than monthly.

Further, Petitioner's writ relief request seeks relief beyond that described in his parole grievance. He seeks a declaration by the Court that he has successfully completed the required sex offender management program defined in Penal Code § 3008, and that the Court order the Department of Corrections and Rehabilitation to cease requiring Petitioner's participation in an "additional" sex offender management program. As discussed above in relation to exhaustion, it is apparent from the testimony offered at the hearing that the Division of Adult Parole Operations takes the position that a "sex offender management program" cannot be completed prior to discharge from parole, and that Petitioner's completion of the treatment phase of the Shaping Success program does not satisfy the obligation for completion of a "sex offender management program". The Attorney General's contention that the petition is moot or unripe lacks merit.

C. Length of Participation in Sex Offender Treatment/Management

1. Habeas Corpus Relief

The fundamental goals of parole are to "'help individuals reintegrate into society as constructive individuals'", "'to end criminal careers through the rehabilitation of those convicted of crime'", and to [help them] become self-supporting." In re Hudson (2006) 14 Cal.App.4th 1, at p. 9, citing In re Stevens (2004) 119 Cal.App.4th 1228 at 1233. A condition of parole will not be held invalid unless it 1) has no relationship to the crime of which the offender was convicted, 2) relates to conduct which is not in itself criminal, and 3) requires or forbids conduct which is not reasonably related to future criminality. Conversely, a condition of parole which requires or forbids conduct which is not itself criminal is valid if that conduct is reasonably related to the crime of which the defendant was convicted or to future criminality. People v. Lent (1975) 15 Cal.3d 481 at 486.

Penal Code § 3008(a) requires the Department of Corrections and Rehabilitation to "ensure that all parolees under active supervision who are deemed to pose a high risk to the public of committing sex crimes, as determined by the State-Authorized Risk Assessment Tool for Sex Offender (SARATSO), … are placed on intensive and specialized parole supervision." Penal Code § 3008(c) further requires the Department to "develop control and containment programming for sex offenders who have been deemed to pose a high risk to the public of committing a sex crime, as determined by the SARATSO, and **shall** require participation in appropriate programming as a condition of parole." (emphasis added by the Court). Penal Code § 3008(d)(2) provides that:

> Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crimes were committed.

Petitioner was convicted of sodomy by force, with the resulting requirement that he register as a sex offender pursuant to Penal Code § 290. The Static-99R is the SARATSO used by the Department to determine risk level, and the hearing evidence establishes that Petitioner's SARATSO score places him in the "high-risk" category. The challenged special condition of parole requiring him to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program" is statutorily required. Applying the Lent test, Petitioner's habeas corpus claim fails. On its face, the challenged special condition of parole is reasonably related both to the crime of which Petitioner was convicted and to his future criminality.

Petitioner's argument that his completion of the "treatment" phase of Shaping Success qualifies as completion of the single sex offender management program required by Penal Code § 3008 is without merit. Petitioner's completion of group counseling with Shaping Success did not result in the termination of his further participation in the program. He was still required to report monthly for individual check-ins and to complete periodic polygraph

testing. His certificate of treatment completion expressly stated that it was not certification that had completed the sex offender management program and that further requirements applied. Petitioner never "completed" a sex offender management program, and the current requirement for participation in the HOPE program is a continuation of the original program with a different provider – not a second program. Petitioner's habeas corpus claim is denied.

2. Court Approval of Length of Participation in Sex Offender Management Program per Penal Code § 3008(d)(2)

Petitioner further asks the Court to exercise the statutory discretion conferred by Penal Code § 3008(d)(2) to set the length of the required sex offender management program in his case as something less than the entire period of parole. The Court grants that request for the following reasons. Penal Code § 3008(d)(2) fixes the length of a sex offender management program as no less than one year and up to the entire period of parole "as determined by the sex offender management professional in consultation with the parole officer and as approved by the court." The evidence in this case demonstrates that the "consultation" contemplated by the statute between the sex offender management professional and parole in this case worked only one way – the program told parole what was required and parole deferred. The HOPE program's determined level of necessary treatment for parolees who had completed Shaping Success's treatment phase was not dependent on individualized criteria. All parolees moving into the HOPE program were required to complete at least two new sets of group counseling – the "pre-treatment" seven module phase, and the "maintenance" twelve module phase – without regard to their individual risk assessments[1], likelihood of re-offense, or history on parole supervision. Both the CASOMB provider and the Division of Adult Parole Operations take the position that a sex offender cannot successfully "complete" a sex offender management treatment program short of being discharged from parole. The discretion

[1] While Dr. Loree's testimony established that HOPE conducted both static and dynamic risk assessments on intake, the testimony also established that all offenders had to complete the seven module "pre-treatment" phase, and all were placed into the twelve module maintenance phase regardless of score. There was apparently no evaluation as to whether maintenance or aftercare placement was appropriate, and no explanation of how the Shaping Success treatment "curriculum" differed from HOPE's such that HOPE's programming was non-duplicative of that already completed by Shaping Success parolees in the "maintenance" phase.

conferred by statute on the Division of Adult Parole Operations and this CASOMB provider is apparently being exercised in all cases to require participation in a sex offender management program for the entire term of parole, apparently without reference to the individualized performance of each parolee. Discretion exercised in that fashion vitiates the Legislature's directive that program participation should last at least one year and "up to" the entire parole term, and effectively requires all parolees participating in this program to do so for the entire term of parole.

The Court, in other cases, has certainly encountered parolees for whom public safety demands participation in a sex offender management program for the entire term of parole. Such a requirement may be justified by a parolee's resistance to supervision, refusal to genuinely engage in treatment, refusal to accept responsibility for the commitment offense, and other similar factors. None of those considerations are present in Petitioner's case. The Legislature's guidance on the purpose of parole is as follows:

> [T]he period immediately following incarceration is critical to successful reintegration of the offender into society and to positive citizenship. It is in the interest of public safety for the state to provide for the effective supervision of and surveillance of parolees, including the judicious use of revocation actions, and to provide educational, vocational, family, and personal counseling necessary to assist parolees in the transition between imprisonment and discharge. Penal Code § 3000(a)(1).

In this case, the undisputed evidence establishes that Petitioner is meeting the goals of successful reintegration into society. His prior CASOMB-certified provider certified to parole that he had "demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan" so as to no longer require group counseling. (Exhibit 9H). He has stable housing and employment. He has progressed in his trade and has enrolled in community college to advance his career prospects. He has a stable family. His performance on parole for at least the last three years has been so positive that his supervising parole officer has recommended his complete discharge from parole supervision, and that recommendation was approved for submission to the Board by multiple supervisory layers of parole administration. Petitioner's other special conditions of parole require in relevant part:

continuous GPS monitoring, parole approval of employment, parole approval of residence with accompanying curfew hours, restrictions on travel, substantial restrictions on use of any computer with accompanying search conditions, and participation in both substance abuse and mental health treatment as directed by parole. Petitioner's other parole conditions are sufficient to meet the public safety requirement for effective supervision and surveillance. His continued engagement in the HOPE program does not serve to "assist [Petitioner] in the transition between imprisonment and discharge", since his parole agent and that agent's supervisors have apparently determined that he is ready for a recommended earned discharge. The Court exercises the authority conferred by Penal Code § 3008(d)(2) to disapprove any further participation in a sex offender management program as a condition of Petitioner's parole, and fixes the length of the required sex offender management program as terminating on March 20, 2023.

DISPOSITION

For the foregoing reasons, the Petition for Writ of Habeas Corpus is HEREBY DENIED. Pursuant to the authority granted by Penal Code § 3008(d)(2), the Court disapproves any further participation in a sex offender management program as a condition of parole, and fixes the length of the sex offender management treatment program required by his sentence as terminating on March 20, 2023.

DATED: _____

ELECTRONICALLY SIGNED

Judge Elizabeth M. Hill
Electronically signed.
Redwood City, CA
2023.03.20
12:24:08-07'00'

Elizabeth M. Hill
Judge of the Superior Court of California
San Mateo County

EXHIBIT C

State of California
Office of Administrative Law

In re:
Department of Corrections and Rehabilitation

Regulatory Action:

Title 15, California Code of Regulations

Adopt sections: 3574
Amend sections:
Repeal sections:

***AMENDED* NOTICE OF APPROVAL OF CERTIFICATE OF COMPLIANCE**

Government Code Sections 11349.1 and 11349.6(d)

OAL Matter Number: 2025-0321-01

OAL Matter Type: Certificate of Compliance (C)

Through this Certificate of Compliance action, the Department of Corrections and Rehabilitation makes permanent the emergency regulatory changes adopted in OAL File No. 2024-0924-02EON and readopted in OAL 2025-0311-01EON. Specifically, the adoption of Section 3574 into California Code of Regulations, Title 15 (CCR 3574) regarding the sex offender treatment program for sex offender supervised persons.

OAL approves this regulatory action pursuant to section 11349.6(d) of the Government Code.

Date: April 28, 2025

Allegra Volonte Anvari
Attorney

For: Kenneth J. Pogue
Director

Original: Jeffrey Macomber, Secretary
Copy: Dmitriy Kostyuk

TEXT OF ADOPTED REGULATIONS

In the following, underline indicates new text.

California Code of Regulations

Title 15. Crime Prevention and Corrections

Division 3. Adult Institutions, Programs and Parole

Chapter 1. Rules and Regulations of Adult Operations and Programs

Subchapter 6. Adult Parole

Article 5. Sex Offenders

3574. Sex Offender Treatment

(a) The requirement for a supervised person to attend sex offender treatment is established pursuant to Penal Code (PC) section 3008(d), persons released to parole and required to register pursuant to PC sections 290 to 290.023 shall participate in a sex offender management program. The sex offender management program is comprised of three treatment phases (Curriculum Phase, Maintenance Phase, Aftercare Phase), Containment Team Meetings (CTM~~s~~), and polygraph examinations. Sex offender treatment providers (who~~m~~ are trained and certified pursuant to PC 290.09) shall be subject to the terms of the California Sex Offender Management Board.

(1) Curriculum Phase, also known as the active phase, is when the supervised person attends individual and group therapy sessions, at the prescribed hours per week, as determined by the sex offender treatment provider. These sessions focus on the goals and objectives of the treatment plan determined by the sex offender treatment provider through the sex offense specific treatment curriculum. It also involves the completion of mandated State Authorized Risk Assessment Tools for Sex Offenders (SARATSO) and the participation in polygraph assessments.

(2) Maintenance Phase is a phase where the supervised person works to maintain the gains made in the curriculum phase. Maintenance phase occurs when a supervised person has addressed the underlying issues related to their offending behavior, developed skills to lead a pro-social life, and mitigated their dynamic risk factors (according to the SARATSO assessment tools), as determined by the sex offender treatment provider, allowing for adjustment of treatment requirements. While in the maintenance phase, the supervised person is expected to continue to work towards their prescribed treatment plan goals, complete SARATSO assessments, participate in polygraph assessments, and attend group sessions as determined by the sex offender treatment provider. The supervised person may be required to attend in person sessions

weekly, monthly, or quarterly, based on their predetermined needs and assessments by the sex offender treatment provider.

(3) Aftercare Phase is a voluntary phase in the format of a support group with the sex offender treatment provider. This phase is for supervised persons who voluntarily continue their participation in the sex offender management program after they have successfully completed the curriculum and maintenance phases or persons who have been discharged from parole supervision.

(A) Persons voluntarily participating in the aftercare phase are responsible for any costs associated with participation.

(4) Containment Team Meeting is a meeting with all involved parties, as referenced in subsection 3574(a)(4)(A), whose purpose is to review the supervised person's treatment progress, dynamic risk factors, polygraph results, community reintegration, response to parole supervision, supervision category, and relevant individual case factors to evaluate the supervised person's readiness for sex offender management program completion.

(A) The Containment Team shall normally be comprised of a parole agent, unit supervisor or assistant unit supervisor, supervised person, contracted clinician (licensed psychiatrist, psychologist, or psychiatric social worker directly treating the supervised person), and victim advocacy representative. In the event all members of the Containment Team are not available to meet, the Containment Team shall minimally consist of a contracted clinician, parole agent, unit supervisor or assistant unit supervisor, and the supervised person. The Containment Team may also include other relevant stakeholders (e.g. Division of Adult Parole Operations and community program managers, polygraph examiner, etc.), family members of the supervised person, or any person in the supervised person's life that wishes to participate and can provide a first-hand account of the positive progress the supervised person is making.

(5) A Polygraph is a machine that measures a person's physiological responses when they respond to questions. Polygraph assessments are completed or contracted by the sex offender treatment provider as required by PC section 3008(d)(3).

(b) Persons placed on parole on or after July 1, 2012, required to register pursuant to PC sections 290 to 290.023, inclusive, shall successfully complete a sex offender management program in accordance with PC section 3008(d). Program participation shall be no less than one year, up to the entire period of parole. Participation in the sex offender management program is required, regardless of when the qualifying offense was committed.

(c) The sex offender treatment provider prescribes the number of treatment hours per week as determined by the supervised person's risks, needs, responsivity, and offense-free time in the community.

(d) Supervised persons may complete a sex offender management program before discharge from parole, as contemplated by the PC section 3008(d).

(e) The Containment Team's review of program completion is solely to determine the length of a supervised person's participation and progress in sex offender treatment. This review is independent of whether the supervised person should be discharged from parole and the electronic monitoring requirements of the supervised person pursuant to PC 3010.10. The CTM schedule shall be as follows:

(1) The ~~first~~ initial CTM shall be between ~~within~~ 90 and 100 calendar days ~~of~~ from release to parole, or ~~within~~ between 90 and 100 calendar days ~~of the supervised person's revocation release date~~ following a release of a supervised person who has spent 90 days or more in custody. The purpose of this CTM is to determine the most appropriate level of parole supervision needed for monitoring the supervised person while in the community, in accordance with Section 3573(c).

(2) The second CTM shall be within nine months following the first CTM (one-year CTM). This is the first review to determine whether the supervised person's sex offender management program requirements have been satisfied, completing their statutory requirement to successfully complete a sex offender management program.

(3) All subsequent CTMs shall be at least annually thereafter in accordance with the supervised person's level of parole supervision.

(f) When the Containment Team makes a determination to retain a participant in a sex offender management program, the determination shall be supported by good cause, as defined in Section 3000. A determination to retain a supervised person in a sex offender management program shall be stated in writing, signed by the sex offender treatment provider and parole agent on the CDCR Form 3043 Containment Team Meeting / Earned Discharge Consideration Committee (Rev.~~7~~11/24), which is incorporated by reference. This completed form shall be delivered to the supervised person within 30 calendar days of the CTM and maintained in the supervised person's file. Reasons to retain a supervised person in a sex offender management program may include, but are not limited to:

(1) Pursuant to Section 3573, a Level of Service or Case Management Inventory (LS/CMI) score of 11 or higher.

(2) Pursuant to Section 3573, a Stable-2007 score of four or higher for males only.

(3) A current polygraph completed with deception found or new disclosure admissions that the supervised person has committed acts that would incur a technical or law violation.

(4) Parole violation(s), relevant to the supervised person's sex offense or adherence to the Conditions and Special Conditions of Parole associated with their sex offense, that occurred within one year of the review.

(g) The parole agent and unit supervisor may re-refer a supervised person to a sex offender management program for evaluation if there is a change in the supervised person's behaviors related to the risk of re-offense to a level likely to lead to a risk to

public safety, using the CDCR 1502 (Rev. 07/24) Activity Report. A re-referral may also be initiated at the request of the supervised person.

(1) Upon re-referral, the sex offender treatment provider shall complete the dynamic risk and violence risk assessments, pursuant to section 3573 and PC sections 290.04 and 290.09, to determine if the risk to re-offend has increased.

(A) If risk to re-offend has increased, the supervised person will be required to attend the sex offender management program, with the prescribed hours of treatment being determined by the sex offender treatment provider, until the increased risk to re-offend has been mitigated. While the supervised person is attending a sex offender management program, CTMs shall be re-established in accordance with Section 3574.

(B) If the sex offender treatment provider determines there is no increased risk in re-offense, the re-referral shall be considered closed, and the sex offender management program requirements remain completed.

Note: Authority cited: Sections 5058 and 5058.3, Penal Code. Reference: Sections 290 through 290.023, 3008, 5054, and 9003, Penal Code.

STATE OF CALIFORNIA

ADOPT

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

CONTAINMENT TEAM MEETING/EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 11/24)

SECTION 1: SUPERVISED PERSON'S INFORMATION (TO BE COMPLETED BY AGENT OF RECORD)

CDCR #	Supervised Person's Name (Last, First, M.I.)	Parole Date	Last Release Date	Supervision Level	Parole Unit

PC 290 Offense: | Commitment Offense (if different): | Participating in SOT: ☐ YES ☐ NO ☐ N/A

Select the form purpose and complete the associated form sections (Check one box)

☐ Initial Containment Team Meeting (CTM) (Sections 1,2 & 4) ☐ CTM & Sex Offender Treatment Review (Sections 1,2,3, 4 & 5 if applicable)
☐ Abbreviated CTM (Sections 1,3, & 4) ☐ Earned Discharge Consideration Committee (complete in PVDTS): PVDTS ID # _____

Was Supervised Person Present? ☐ YES ☐ NO If No, Cite Reason - Check Appropriate Box(es):

☐ Supervised Person Did Not Respond to Request ☐ Supervised Person is Not Required to Attend ☐ Supervised Person Failed to Appear
☐ Supervised Person Declined to Participate ☐ Supervised Person Participated Telephonically

Other Participant's Name: _____ Relation to Supervised Person _____ Comments: _____

SECTION 2: ASSESSMENT SCORES (TO BE COMPLETED BY AGENT OF RECORD)

ASSESSMENT TOOL	SCORE	OBJECTIVE CRITERIA
CSRA		☐ LOW (1) ☐ MODERATE (2) ☐ HIGH (3 TO 5)
STATIC (IF APPLICABLE)		☐ HIGH RISK SEX OFFENDER (HRSO)(4 AND ABOVE) ☐ NON-HRSO (3 AND BELOW)
FEMALE SEX OFFENDER RISK ASSESSMENT (IF APPLICABLE)		☐ HRSO (MODERATE, HIGH) ☐ NON-HRSO (LOW)
LS/CMI _____ Date Administered		☐ VERY LOW (0TO 4) ☐ LOW (5 TO 10) ☐ MODERATE (11 TO 19) ☐ HIGH (20 TO 29) ☐ VERY HIGH (30 AND ABOVE)
Stable 2007 (MALES ONLY) _____ Date Administered		☐ LOW (0 TO 3) ☐ MODERATE (4TO 11) ☐ HIGH (12 AND ABOVE)
POLYGRAPH _____ Date Administered ☐ **INCONCLUSIVE**		**DECEPTION FOUND** ☐ YES ☐ NO ☐ N/A — **DISCLOSURE ADMISSION** ☐ YES ☐ NO

SECTION 3: SUMMARY OF PAROLE ADJUSTMENT (TO BE COMPLETED BY AGENT OF RECORD)

OBJECTIVES	SCORE		OBJECTIVE CRITERIA (Select One Rating Per Objective) ☐ See Discharge Review Dated: _____
OBJECTIVE 1: Supervised person has maintained residence stability in a positive living environment.	☐	1	Has been in the same pro-social living situation for the review period, or most recent move was to improve overall living conditions, and current residence expected to remain stable.
	☐	2	Has been in two or more living situations for the review period with any move not improving the living conditions.
	☐	3	Has demonstrated an unstable living environment, is transient or routinely difficult to see at the residence of record.
OBJECTIVE 2: Supervised person's time has been structured around pro-social activities geared towards self-reliance.	☐	1	Time is highly structured and focused on pro-social activities.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
OBJECTIVE 3: Supervised person has been compliant with all general and special conditions of parole.	☐	1	No violation has been substantiated for the review period.
	☐	2	Has only one technical violation and demonstrated a positive response to the imposed sanction.
	☐	3	The supervised person has not met the rating standard for #1 or #2 below.
OBJECTIVE 4: Supervised person has been referred to and has participated in programming for the top three identified criminogenic needs.	☐	1	Attended, participated, and completed programming.
	☐	2	Attended and partially participated in programming.
	☐	3	Failed to participate or complete programming.
OBJECTIVE 5: Supervised person has been referred to and participated in required sex offender treatment.	☐	1	Attended, participated, and/or completed sex offender treatment.
	☐	2	Attended and partially participated in sex offender treatment.
	☐	3	Failed to participate or complete sex offender treatment.
	☐	4	Demonstrated deception in polygraph.
OBJECTIVE 6: Supervised person has been and is affiliated with other pro-social individuals.	☐	1	Relationships are primarily pro-social and supportive of a crime free lifestyle.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
TOTAL SCORE:			☐ **6 - 7 Reduction May be Warranted** ☐ **8-12 No Change Warranted** ☐ **13-19 Increase May be Warranted**

DISTRIBUTION: Original: Field File **Copies:** Agent of Record (AOR), Supervised Person

CONTAINMENT TEAM MEETING/EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 11/24)

SECTION 4: CATEGORY DETERMINATION AND/OR SOT REVIEW (TO BE COMPLETED BY DAPO AND SEX OFFENDER TREATMENT PROVIDER)

Treatment Provider Name	Treatment Provider Signature	CASOMB Certification Date	Treatment Program Name	Date

Treatment Provider Sex Offender Treatment Recommendation:

☐ Retain ☐ Complete ☐ Comments:

AOR Name	AOR Signature	Badge #	Date

AOR Sex Offender Treatment Recommendation: ☐ Retain ☐ Complete ☐ N/A

AOR Supervision Category Recommendation: ☐ Remain in Current Category ☐ Move to Category: _____

☐ Comments:

Effective Communication/Accommodation Provided: ☐ NO ☐ YES

Unit Supervisor (US) Name	US Signature	Badge #	Date

US Sex Offender Treatment Recommendation: ☐ Retain ☐ Complete ☐ N/A

US Determination: ☐ Remain in Current Category ☐ Move to Category: _____ Effective Date: _____

☐ Comments:

District Administrator (DA) Decision: ☐ Supervised person is currently ST or SA and will be reclassified to SC **(DA Signature Required)**

DA Name **(If applicable)**	DA Signature	Badge #	Date

SECTION 5: SEX OFFENDER UNIT (SOU) DETERMINATION (TO BE COMPLETED BY SOU PAROLE ADMINISTRATOR/ PAROLE AGENT III)

☐ This section shall be completed when the supervising parole unit and the SOT provider have conflicting sex offender treatment recommendations.

SOU Parole Administrator/ Parole Agent III Sex Offender Treatment Recommendation: ☐ Retain ☐ Complete

☐ Comments:

Parole Administrator/ Parole Agent III Name	Parole Administrator/ Parole Agent III Signature	Badge #	Date

STATE OF CALIFORNIA

REPEAL

DIVISION OF ADULT PAROLE OPERATIONS

CONTAINMENT TEAM MEETING/ EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 07/24)

SECTION 1: SUPERVISED PERSON'S INFORMATION

CDCR #	Supervised Person's Name (Last, First, M.I.)	Parole Date	Last Release Date	CDD	Supervision Level	Parole Unit

Commitment Offense(s): | PC 290 Offense:

CSRA SCORE: ☐ **LOW (1)** ☐ **MODERATE (2)** ☐ **HIGH (3 TO 5)** | Participating in SOMP: ☐ YES ☐ NO

(Select the form purpose and complete the associated form sections)

☐ Initial Containment Team Meeting (CTM) (Sections 1,2 & 4) ☐ CTM & Sex Offender Treatment Review (Sections 1,2,3,4 & 5)

☐ Abbreviated CTM (Sections 1,2,3 & 4) ☐ Earned Discharge Consideration Committee (Sections 1 & 6)

Was Supervised Person Present? ☐ YES ☐ NO If No, Cite Reason - Check Appropriate Box(es):

☐ Supervised Person Did Not Respond to Request ☐ Supervised Person is Not Required to Attend ☐ Supervised Person Failed to Appear

☐ Supervised Person Declined to Participate ☐ Supervised Person Participated Telephonically

☐ Effective Communication/Accommodation Provided:

Other Participants

Name:_____ Relation to Supervised Person_____ Comments: _____

SECTION 2: SEX OFFENDER TREATMENT ASSESSMENT SCORES

ASSESSMENT TOOL	SCORE	OBJECTIVE CRITERIA
STATIC SCORE OR FEMALE SEX OFFENDER RISK ASSESSMENT Date Administered: _____		☐ HIGH RISK SEX OFFENDER (HRSO) (MODERATE, HIGH, OR 4 AND ABOVE) ☐ NON- HRSO (LOW OR 3 AND BELOW)
LS/CMI Date Administered: _____		☐ VERY LOW (0 TO 4) ☐ LOW (5 TO 10) ☐ MODERATE (11 TO 19) ☐ HIGH (20 TO 29) ☐ VERY HIGH (30 AND ABOVE)
Stable 2007 (MALES ONLY) Date Administered: _____		☐ LOW (0 TO 3) ☐ MODERATE (4 TO 11) ☐ HIGH (12 AND ABOVE)
POLYGRAPH TYPE: ☐ **MAINTENANCE** ☐ **INSTANT OFFENSE** ☐ **SEXUAL HISTORY** Date Administered:_____ ☐ **INCONCLUSIVE**		**DECEPTION FOUND** ☐ YES ☐ NO ☐ N/A — **DISCLOSURE ADMISSION** ☐ YES ☐ NO ☐ N/A

SECTION 3: SUMMARY OF PAROLE ADJUSTMENT

OBJECTIVES	SCORE		OBJECTIVE CRITERIA (Select One Rating Per Objective) ☐ See Discharge Review Dated: _____
OBJECTIVE 1: Supervised person has maintained residence stability in a positive living environment.	☐	1	Has been in the same pro-social living situation for the review period, or most recent move was to improve overall living conditions, and current residence expected to remain stable.
	☐	2	Has been in two or more living situations for the review period with any move not improving the living conditions.
	☐	3	Has demonstrated an unstable living environment, is transient or routinely difficult to see at the residence of record.
OBJECTIVE 2: Supervised person's time has been structured around pro-social activities geared towards self-reliance.	☐	1	Time is highly structured and focused on pro-social activities.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
OBJECTIVE 3: Supervised person has been compliant with all general and special conditions of parole.	☐	1	No violation has been substantiated for the review period.
	☐	2	Has only one technical violation and demonstrated a positive response to the imposed sanction.
	☐	3	The supervised person has not met the rating standard for #1 or #2 below.
OBJECTIVE 4: Supervised person has been referred to and has participated in programming for the top three identified criminogenic needs.	☐	1	Attended, participated, and completed programming.
	☐	2	Attended and partially participated in programming.
	☐	3	Failed to participate or complete programming.
OBJECTIVE 5: Supervised person has been referred to and participated in required sex offender treatment.	☐	1	Attended, participated, and/or completed sex offender treatment.
	☐	2	Attended and partially participated in sex offender treatment.
	☐	3	Failed to participate or complete sex offender treatment.
	☐	4	Demonstrated deception in polygraph.
OBJECTIVE 6: Supervised person has been and is affiliated with other pro-social individuals.	☐	1	Relationships are primarily pro-social and supportive of a crime free lifestyle.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
TOTAL SCORE:			☐ **6 - 7 Reduction May be Warranted** ☐ **8-12 No Change Warranted** ☐ **13-19 Increase May be Warranted**

DISTRIBUTION: Original: C-File **Copies:** Agent of Record (AOR), Supervised Person

CONTAINMENT TEAM MEETING/ EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 07/24)

SECTION 4: CATEGORY DETERMINATION

AOR Recommendation: ☐ Remain in Current Category ☐ Move to Category: _____

AOR Name	AOR Signature	Badge #	Date

AOR Comments and Instructions:

Unit Supervisor (US) Decision: ☐ Remain in Current Category ☐ Move to Category: _____ ☐ Effective Date: _____

US Name	US Signature	Badge #	Date

US Comments and Instructions:

District Administrator (DA) Decision: ☐ Supervised person is currently ST or SA and will be reclassified to SC **(DA Signature Required)**

DA Name **(If applicable)**	DA Signature	Badge #	Date

SECTION 5: SEX OFFENDER TREATMENT REVIEW

Treatment Provider Name	Treatment Provider Signature	CASOMB Certification Number	Treatment Program Name	Date

Treatment Provider Recommendation:

☐ Retain ☐ Complete ☐ Comments:

AOR Name	AOR Signature	Badge #	Date

AOR Recommendation:

☐ Retain ☐ Complete ☐ Comments:

Unit Supervisor (US) Name	US Signature	Badge #	Date

US Recommendation:

☐ Retain ☐ Complete ☐ Comments:

SECTION 6: EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 1502-DR, Discharge Review Report, Provided to Supervised Person ☐ YES ☐ NO

Completed in Parole Violations Disposition Tracking System (PVDTS) ☐ YES ☐ NO

If YES, PVDTS ID Number: _____ ***Note: If YES, attach the PVDTS report in lieu of completing this section***

US Name	US Signature	Badge #	Date

US Recommendation:

☐ Discharge ☐ Retain on Parole ☐ Comments:

DA Name	DA Signature	Badge #	Date

DA Recommendation:

☐ Discharge ☐ Retain on Parole ☐ Comments:

Administrative Review Officer (ARO) Name	ARO Signature	Badge #	Date

ARO Determination:

☐ Discharge ☐ Retain on Parole ☐ Comments:

FINAL STATEMENT OF REASONS

The Initial Statement of Reasons (ISOR) is incorporated by reference.

UPDATES TO THE INITIAL STATEMENT OF REASONS:

On January 3, 2025, the California Department of Corrections and Rehabilitation (CDCR or the department) published the Notice of Change to Regulations for Sex Offender Treatment, which began the public comment period. The department's Notice of Change to Regulations #25-01 was mailed the same day to individuals who had requested to be on the department's mailing list for regulation changes, was posted on the department's website, and copies were posted in CDCR institutions. Five written public comments were received during the public comment period. The comments are summarized and responded to below under the heading *Summaries and Responses to Written Public Comments Received During the Initial Comment Period*. A public hearing was held on February 20, 2025. The department received no comments during the public hearing.

DETERMINATIONS, ASSESSMENTS, MANDATES, AND FISCAL IMPACT:

The department has determined that no alternative considered would be more effective in carrying out the purpose for which this regulation is proposed or would be as effective and less burdensome to affected private persons or would be more cost effective to affected private persons and equally effective in implementing the statutory policy or other provision of law than the action proposed. No such alternatives were proposed or brought to the department's attention during the adoption of this rulemaking action.

The department has made an initial determination that the action will not have a significant adverse economic impact on business. Additionally, there has been no testimony or other evidence provided that would alter the department's initial determination.

The department has determined that this action imposes no mandates on local agencies or school districts, or a mandate which requires reimbursement pursuant to Part 7 (Section 17561) of Division 4 of the Government Code (GC).

The department has determined that no reasonable alternatives to the regulation have been identified or brought to the attention of the department that would lessen any adverse impact on affected private persons or small businesses than the action planned.

The department, in proposing the adoption of these regulations, has not identified nor has it relied upon any technical, theoretical, or empirical study, report, or similar document.

The department has relied upon the results of the Economic Impact Assessment, which can be found in the Notice of Proposed Regulations and is available for review as part of the rulemaking file.

NOTE REGARDING CDCR FORMS INCORPORATED BY REFERENCE (CCR, TITLE 1, SECTION 20):

This note explains the department's justification for incorporating forms by reference. The department uses over 1,500 forms, most of which are regulatory. It would be unduly

cumbersome, expensive and impractical to print all of these forms in the CCR text, therefore the department has always incorporated forms by reference, except in specific circumstances which do not apply in the case of these regulations.

The adopted, amended, and/or repealed forms included in this rulemaking action were made available to the public for review and were included in the notice of rulemaking sent to all parties who have requested notification.

AUTHORITY AND REFERENCES CITATIONS:

Penal Code sections 5058, 5058.3, 290 through 290.023, 3008, 5054, and 9003.

SUMMARIES AND RESPONSES TO WRITTEN PUBLIC COMMENTS RECEIVED DURING THE INITIAL COMMENT PERIOD:

Commenter #1

Comment 1: Pursuant to Section 3573, a Stable-2007 score of "four or higher for males only" shall be, amended to include but not limited to Transgender Men and Transgender Women. In addition, to include any sexual predator who is a biological person whose identity includes not soley Male or Transgender Female, or nonbinary. A stable score shall also be applicable to former biological males that now identify with an identity other than male.

In addition, it is imperative that the Aftercare Phase is a Mandatory Outpatient phase in the format of a support group with the sex offender treatment provider. The phase shall be for supervised persons and shall be mandated for no less than one, continuous year, to continue the sex offender's participation in the sex offender management program after the sex offender has successfully completed the curriculum and maintenance phases, or persons who have been discharged from parole supervision.

Response 1:

California Code of Regulations (CCR), Title 15, Section 3574 Sex Offender Treatment (f) (2) references reasons to retain a supervised person in a sex offender management program. Pursuant to this section, a Stable-2007 score of four or higher for males only is a factor. The California Sex Offender Management Board (CASOMB) has established State Authorized Risk Assessment Tools for Sex Offenders (SARATSO). These assessments are validated, and sex offender management professionals utilize the appropriate coding manual and addendums for determining scoring. The Stable-2007 is for males only and utilizes the appropriate coding. Gender identity is not a factor in the validation or application of the tool.

Regarding part two of the comment, CCR Title 15, Section 3574, Sex Offender Treatment, provides for a comprehensive evaluation of risk and needs for each supervised person. Sex Offender Treatment (SOT) participation is based on risk of re-offense to a level likely to lead to a risk to public safety. When the supervised person has successfully completed the maintenance phase it has been determined that their risk and needs have decreased

sufficiently to complete treatment. Additionally, requiring a person to attend a phase of treatment after it has been determined that they have successfully completed contradicts the purpose of the regulation. Lastly, aftercare phase is also voluntarily, attended by those who have discharged parole. The Division of Adult Parole Operations (DAPO) does not have the authority to require a person attend treatment if that person is no longer under the jurisdiction of DAPO.

Commenter #2

Comment: Commenter is an incarcerated person from High Desert State Prison. Commenter wants to know if there is a part from the proposed regulations for incarcerated persons who plead “no contest.” Commenter states these people were accused of horrible charges and had no choice but to accept deals. Commenter states these groups should be able to live their life without watching their backs. These incarcerated persons should be reviewed on a case-by-case basis, including review of the programs complete while incarcerated, and the evidence for the crime accused of, upon their release.

Response 2:

The requirement for persons placed on parole, that are required to register pursuant to Penal Code (PC) sections 290 to 290.023, inclusive, attend sex offender treatment as required by PC 3008(d). Specifically, PC 3008(d)(2) states, “Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed.”

These regulations only establish parameters for the existing PC and are unable to alter the existing requirements set forth by PC.

Commenter #3

Comment 3: Commenter is an incarcerated person who provides some background information to their incarceration and sentencing. Commenter states that there are no rehabilitation efforts for incarcerated persons who are sentences as sex offenders, only punitive efforts. Commenter provides support for the proposed sex offender treatment program, but states that sex offender treatment efforts should be offered before release and completed during incarceration not after release, due to different life circumstances after release.

Response 3:

These regulations only establish parameters for the existing PC and are unable to alter the existing requirements set forth by PC. DAPO must abide by PC 3008(d)(2), which states, “Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed.”

Additionally, the proposed regulations are regarding Sex Offender Treatment after the release from incarceration. The proposed regulations do not address institutional sex offender treatment programs or their availability. Therefore, the department cannot speak to or address this subject matter at the moment.

Lastly, your comment identifies concerns for potential costs associated with a supervised person’s request for a voluntary re-referral to SOT. PC 3008(e) states, “Any defendant ordered to be placed in an approved sex offender management treatment program pursuant to subdivision (d) shall be responsible for paying the expense of their participation in the program. The department shall take into consideration the ability of the defendant to pay, and no defendant shall be denied discharge onto parole because of their inability to pay.”

Commenter #4

Comments 4 and 5 are duplicative: Commenter is a sex offender treatment provider and is responding to NCR 25-05 to solicitate their services and be considered as a contractor to provide sex offender treatment services.

Response 4: The comment is either insufficiently related to the specific action or actions proposed, or too generalized or personalized to the extent that no meaningful response can be formulated by the department in refutation of or accommodation to the comment. Therefore, the comment is being dismissed.

Additionally, the department responded to the commenter with resources on how to bid on state contracts.

EXHIBIT D

Gmail

Wage Notice - For your reference only

Srivastava, Priyanshi <psrivastava3@centerlinedrivers.com> Wed,
Reply-To: "Srivastava, Priyanshi" <psrivastava3@centerlinedrivers.com>
To: "bnn.cdl@gmail.com" <bnn.cdl@gmail.com>
Cc: Erika <Erika@centerlinedrivers.com>, "Saxena, Anusha" <Asaxena@centerlinedrivers.com>, "Arora, Aryan" <aarora7@centerlinedrivers.com>

CENTERLINE
a TRUEBLUE company

1600 East 4th Street, Suite 340
Santa Ana, CA 92701
888-213-7483

Employee Name Ngwanforbi, Brendan

Job Site Information
Lily Transportation - Toyota Dedicated
2451 Bishop Drive

San Ramon, CA 94583

Date 10/30/2024

Start Date 10/29/2024

Note All assignments are on a temporary basis, therefore the shift start and end time to day and/or week to week.

Anticipated Start Time

Anticipated End Time or until route is completed

End Date (if known)

Report to

Job Description and requirements Truck Driver - Valid CDL and Medical Card required and must be in possession at all time.

Pay Period You will be paid every Friday for work performed the previous work week.

Pay Rates Regular: $33.35
PREMIUM TIME: $50.03

Pay Type

Your pay type can be based on an hourly rate and/or any one or combination of the following if allowed by law: mileage, trip/run, drops, hooks, layovers, stops or salary. Your wage statement will indicate which pay receiving

Place of Payment

If you have chosen direct deposit, you wages will be deposited into the bank account specified in your direct deposit paperwork. If you have chosen payment by cash card, you wages will be available on your card have opted to receive a check, it will be mailed from Centerline's Santa Ana, CA office on payday.

Deductions

Centerline reserves the right to deduct from an employee's wage for any company debt or obligation such as, but not limited to, employee elected insurance premiums, local, state and federal required taxes and c support and garnishments. Wage deductions will only be made as permitted under local, state and federal regulations.

Worker's Compensation Carrier

The Insurance Company of the State of Pennsylvania | 175 Water Street, 18th Floor, New York, NY 10038 | Phone No: 212-458-7000 | Policy No: 086476613

Reminders

§ If safety equipment is provided, it will be at no charge to you.

§ Centerline does not provide or charge workers for services such as transportation and/or meals unless a per-diem applies. If a per diem applies, you will receive notice about the terms of the per diem.

§ You will not be charged for any supplies or training

§ You will not perform duties for a client that is undergoing a strike and/or lockout. Notify Centerline if you become aware of strike and/or lockout

§ Your employment is at will

I hereby acknowledge that Centerline, a TrueBlue company, provided me with my employment-related notice in accordance with the state regulations.

EXHIBIT E

03-25-2025

Dear **Brendan**:

Congratulations! We are excited to offer you the position of **Retail Customer Service Associate** with **FedEx Office.** We are looking forward to your career journey with FedEx. This offer of at-will employment is conditioned on the satisfactory completion of certain requirements, as more fully explained below.

Details
Position Title: **Retail Customer Service Associate**
Position Type: **Part_time**
Anticipated start date: April 08, 2025
Hiring Manager: PETRA ESTRELLA**,** Flagship Store Manager
Location: **1061 W March Ln, Stockton, CA, 95207-6210**
Work Mode Designation: Onsite

Compensation
Hourly Base Pay: $20.50 / per hour
Pay Frequency: **Weekly** installments

Benefits
FedEx Office offers outstanding people-first benefit plans and programs, including medical, dental, vision, life insurance, paid time off, 401k, tuition reimbursement, company discounts, and more.

Offer Contingency
This offer is contingent upon satisfactory completion of certain requirements outlined in this letter. Your start date may be impacted, and this offer may be withdrawn, if any of the following required conditions are not successfully completed:

Verification of your right to work in the United States, as demonstrated by your completion for the Form I-9 upon hire and submission of acceptable documentation

(as noted on the Form I-9) verifying your identity and work authorization within three days of starting employment.

Satisfactory completion of a background check. Required notice and consent forms will be sent to you in a separate link after you accept this offer.

Your review and acceptance of an Employment Agreement as required by **FedEx Office**

Your successful completion of the following pre-employment screens required for this position:

- Drug Screen - Satisfactory completion of a drug screen.

What's Next
Please accept this offer by electronically signing this letter and any Addendums within 72 hours.

Your employment with **FedEx Office** is "at-will", which means that either you or the Company may end your employment at any time, with or without notice, consistent with applicable law.

As a condition of your employment, you are responsible for becoming familiar with and complying with all **FedEx Office** policies and procedures which will become available to you after hire. If your position requires ongoing mandatory training and/or education, successful completion of that training and/or education is also a requirement for continued employment.

Please don't hesitate to contact me if you have any questions about this offer or the information in this letter. We're excited about the prospect of you joining our team and becoming a part of our continued growth and progress.

Sincerely,
Danielle Sutton
Recruiting Partner
danielle.sutton.osv@fedex.com
(972) 636-8727

Your employment offer is contingent on your review, signature, and return of the FedEx Office Mutual Arbitration Agreement, which you are required to agree to as a

condition of your employment with FedEx Office.

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

FedEx Office Offer Next Steps!

Danielle Sutton (OSV) <danielle.sutton.osv@fedex.com> Tue, Mar 25, 2025 at 10:47 AM
To: bnn.cdl@gmail.com <bnn.cdl@gmail.com>

Hi Brendan,

Congratulations on your FedEx Office offer! As a reminder, you have **72 hours** to complete your offer letter acceptance.

You will then get email communication from First Advantage to complete your background check and drug screen. Be sure to check your Spam or Junk folders in your Inbox just in case. Please fill these out ASAP!

Following your acceptance, you will have **72 hours** to complete the drug test. Be sure to either schedule an appointment or arrive before 5pm to avoid missing your window. *Failure to attend your drug screen within this time frame will result in an automatic failure.* Please keep an eye out for an email from First Advantage with your ePassport.

Be well hydrated and do not leave the facility before you have produced enough sample!

Once you have successfully completed your drug screen, please reply to this email, or send me a text at the number below to confirm that you have attended and completed your drug test.

I will continue to keep you updated as soon as everything has cleared, and if you have any questions don't hesitate to reach out to me!

Best regards,

Danielle Sutton I Recruiting Partner I FedEx Office I office 972.636.8727

7900 Legacy Drive, Plano, TX 75024 I fedex.com/careers

UPCOMING PTO: March 31st

Gmail

Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

FedEx Office | Up next > Drug Test | P-3112321 | P25-179239-2 | Nforbi, Brendan

Iesha Celestine <iesha.white@fedex.com> Wed, Mar 26, 2025 at 12:09 PM
To: bnn.cdl@gmail.com <bnn.cdl@gmail.com>
Cc: Danielle Sutton (OSV) <danielle.sutton.osv@fedex.com>, PETRA ESTRELLA <petra.estrella@fedex.com>

Hello Brendan,

Thank you for accepting the offer for employment with FedEx Office! As noted in the material sent to you, your offer of employment is contingent upon successful completion of pre-employment background check and drug screen.

You will receive an email from our vendor, ***First Advantage Corporation Reporting Service*** <FADVReports-NoReply@fadv.com> with instructions to complete the drug testing process.

-

Important Information:

- The deadline to complete the drug test is 72 business hours from the Request Date and time, highlighted in red in the email from First Advantage. Weekends and holidays are not included in the 72-hour timeframe.
- Pay close attention to the testing sites and their hours of operation. Some require an appointment.
- If you don't receive the email from First Advantage, please check your spam folder. Contact me directly if you aren't in receipt of the email from first advantage.
- **Please complete this requirement as soon as possible. Missing the deadline will impact your eligibility for hire.**

Please don't hesitate to contact me directly if you have any questions. I'm happy to help any way I can.

Thank You

[Quoted text hidden]

EXHIBIT F

DEPARTMENT 86 LAW AND MOTION RULINGS

Case Number: 23STCP02378 **Hearing Date:** December 13, 2023 **Dept:** 86

ALLIANCE FOR CONSTITUTIONAL SEX OFFENSE LAWS, INC. v. MACOMBER

Case Number: 23STCP02378

Hearing Date: December 13, 2023

[Tentative] ORDER OVERRULING DEMURRER

Respondent, Jeff Macomber, Secretary of the California Department of Corrections and Rehabilitation (CDCR), demurs to the petition for writ of mandate filed by Petitioners, Alliance for Constitutional Sex Offense Laws, Inc., Christopher Sandahl, Joshua Morales, Alexander Flores, John Doe # 1, and John Doe # 2 (collectively, Petitioners).

Petitioners' unopposed Request for Judicial Notice (RJN) of Exhibits A and B is granted.

SUMMARY OF PETITION ALLEGATIONS

The five individual Petitioners are parolees subject to the jurisdiction of the CDCR. Petitioner, Alliance for Constitutional Sex Offense Laws, Inc., is a non-profit organization. (Pet. ¶¶ 9-17.)

Petitioners contend "CDCR's regulations, policies, and practices are inconsistent with and in conflict with the statutory requirements of the 'Containment Model' of parole supervision codified in Penal Code section 3008, subds. (d)(1)-(d)(4), and related statutes." (Pet. ¶ 1.)

The petition alleges Penal Code section 3008, subdivision (d) and related statutes codify the Containment Model. (Pet. ¶¶ 20-24.) The petition explains Penal Code "Section 3008(d) requires each Registrant on parole to 'successfully complete **a** sex offender management program . . . as a condition of parole.' (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.)" (Pet. ¶ 2.) "[T]he Legislature declared that 'the length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court.' (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.) In other words, Section 3008(d) requires CDCR to provide Registrants the opportunity to 'complete,' and thereby terminate their participation in, the management program as early as one year after placement on parole." (Pet. ¶ 3.)[1]

As relevant to this demurer, the petition alleges, in conflict with Penal Code section 3008, subdivision (d), CDCR regulations, policy, and practice do not allow registrants to complete and discontinue the management program prior to discharge from parole. (Pet. ¶¶ 31-55, 57-60.) Among others, relevant allegations in support of this claim include the following:

> The only CDCR regulation that expressly implements Section 3008 and the management program it requires as a condition of parole is Title 15, Section 3573, of the Code of Regulations. . . . Notably, no provision of Section 3573 or any other regulation allows for the 'completion' of the management program. Nor does Section 3573 or any other regulation allow for termination of a Registrant's participation in the management program prior to discharge from parole, as Section 3008(d) contemplates. (Pet. ¶ 32.)
>
> Notably, the Operations Manual for CDCR's Division of Adult Parole Operations confirms that Registrants are retained in the management program for the duration of their parole term, regardless of whether continued participation is necessary. . . . (Pet. ¶ 33.)
>
> [U]pon information and belief, as a matter of policy and practice, CDCR does not permit any Registrant to 'complete' the management program prior to discharge from parole, as Section 3008(d) contemplates. Nor does CDCR otherwise allow a Registrant's participation in the management program to be terminated, as Section 3008(d) contemplates. Rather, CDCR and CDCR, as a matter of policy, retain all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense. (Pet. ¶ 34.)
>
> CDCR recently confirmed its policy in the habeas corpus proceeding captioned *In re Frederick Dwyer* (See Exh. A, Order dated March 20, 2023 in San Mateo Co. Super. Ct. Case No. SC-080355A, HC-3020). (Pet. ¶ 35 and Exh. A.)
>
> The Registrant challenged the requirement to repeat the treatment curriculum in a petition for writ of habeas corpus, invoking the Court's discretionary authority to terminate a sex offender management program after one year pursuant to Section 3008. The Court held an evidentiary hearing at which it found that the sole basis for retaining the Registrant in the management program was CDCR's policy of requiring all Registrants to participate in the program for the duration of parole, regardless of their individual treatment needs. (Exh. A, at p. 10.) CDCR agents including the Registrant's individual parole agent, as well the parole administrator for the East Bay District (Alameda and Contra Costa County), confirmed that policy in response to the Court's inquiry:
>
> [THE COURT:] Have you ever during the time that you have been in the positions that you have described were responsible to 290 registrants seen a participant in a sex offender management program complete such a program prior to[] termination or discharge from parole?
>
> THE [CDCR] WITNESS: No.
>
> THE COURT: Is it essentially the policy of the Department of Corrections that completion of the program is not possible before the discharge from parole program . . . ?
>
> THE [CDCR] WITNESS: Yes.

(Transcript of Hearing on February 9, 2023 in *In re Dwyer*, (San Mateo Co. Super. Ct. Case No. SC080355A, HC-3020). See also Order, Exh. A, at pp. 6-7 ["[A former East Bay region supervisor from CDCR] testified that it is the policy of the California Department of Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge 3 from parole."].) (Pet. ¶ 39.)

Based on these and other allegations, Petitioners seek a writ of mandate directing Respondent "to amend and revise its regulations implementing Penal Code section 3008(d), including its Regulations at Code of Regulations, Title 15, section 3573, to permit Penal Code section 290 Registrants supervised by CDCR on parole to complete and be terminated from the sex offender management program required by Penal Code section 3008(d) after one year in the program, and prior to discharge from parole." (Pet. ¶¶ 56-61 and Prayer ¶ A.)

In the second cause of action for declaratory relief, Petitioners pray for "a judgment declaring that Penal Code section 3008(d) prohibits CDCR from retaining, as a matter of policy or practice, all Registrants in a sex offender management program for the entire term of parole." (Pet. ¶¶ 63-68 and Prayer ¶ B.)

LEGAL STANDARD FOR DEMURRER

A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civil Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We assume the truth of the allegations in the complaint, but do not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters." (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The allegations in the petition must be liberally construed in favor of a petitioner on demurrer. (See *Mobil Oil Corp. v Exxon Corp.* (1986) 177 Cal.App.3d 942, 947.) "A demurrer must dispose of an entire cause of action to be sustained." (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

ANALYSIS

First Cause of Action – Writ of Mandate

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The first cause of action is for ordinary mandate pursuant to Code of Civil Procedure section 1085. There are two essential requirements to the issuance of an ordinary writ of mandate:

(1) a clear, present, and ministerial duty on the part of the respondent, and (2) a clear, present, and beneficial right on the part of the petitioner to the performance of that duty. (*California Ass'n for Health Services at Home v. Department of Health Services* (2007) 148 Cal.App.4th 696, 704.) "An action in ordinary mandamus is proper where . . . the claim is that an agency has failed to act as required by law." (*Id*. at 705.)

"Generally, mandamus is available to compel a public agency's performance or to correct an agency's abuse of discretion when the action being compelled or corrected is ministerial." (*AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 700.) "A ministerial act is an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists." (*Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916.)

" 'While, of course, it is the general rule that mandamus will not lie to control the discretion of a court or officer, meaning by that that it will not lie to force the exercise of discretion in a particular manner . . . [it] will lie to correct abuses of discretion, and will lie to force a particular action by the inferior tribunal or officer, when the law clearly establishes the petitioner's right to such action.' " (*Flores v. Dept. of Corrections & Rehabilitation* (2014) 224 Cal.App.4th 199, 208.)

Respondent argue Petitioners have not stated a cause of action for mandate because:

(1) Petitioners failed to exhaust their administrative remedies in CDCR's "robust administrative grievance and appeal process (Memo 11:6-7); (2) the petition provides "no factual support" (Memo 12:18); (3) Petitioners "fail to establish a ministerial duty or valid rule making challenge" related to CDCR's regulations (Memo 16:12); and (4) Petitioners have an adequate legal remedy in a petition for writ of habeas corpus. (Memo 16:16.)

Petitioners assert the demurrer misapprehends the nature of the petition and fails to address all pertinent allegations. The court agrees. Respondent's demurrer does not persuasively address Petitioner's specific legal claim or all pertinent allegations, including those based on evidence from *In re Frederick Dwyer*. For that reason, and the additional reasons outlined below, the demurrer is overruled.[2]

Exhaustion of Administrative Remedies

Exhaustion of administrative remedies is "a jurisdictional prerequisite to judicial review." (*California Water Impact Network v. Newhall County Water Dist.* (2008) 161 Cal.App.4th 1464, 1489.)
"The exhaustion requirement applies whether relief is sought by traditional (Code Civ. Proc., § 1085) or administrative (Code Civ. Proc., § 1094.5) mandamus." (*Eight Unnamed Physicians v. Medical Executive Com.* (2007) 150 Cal.App.4th 503, 511.)

"Before seeking judicial review a party must show that he has made a full presentation to the administrative agency upon all issues of the case and at all prescribed stages of the administrative proceedings." (*Edgren v. Regents of University of California* (1984) 158 Cal.App.3d 515, 520.) There are exceptions to the exhaustion requirement, including "when the subject of the controversy lies outside the administrative agency's jurisdiction, when pursuit of an administrative remedy would result in irreparable harm, when the administrative agency cannot grant an adequate remedy, and when the aggrieved party can positively state

what the administrative agency's decision in his particular case would be." (*Edgren v. Regents of University of California, supra,* 158 Cal.App.3d at 520.)

Respondent contends CDCR's governing regulations establish a "robust administrative grievance and appeal process for inmates and parolees . . . to challenge imposed parole conditions or seek modifications of the conditions imposed before seeking judicial relief." (Memo 11:6-10 [citing Cal. Code Regs., tit. 15, § 3481, subd. (a).)[3] CDCR's exhaustion argument might be persuasive if Petitioners were seeking writs to terminate their own participation in a treatment program or other relief specific to their individual parole conditions. However, Petitioners do not seek such relief. Instead, Petitioners challenge the legality of CDCR's regulatory implementation of Penal Code section 3008 and the sex offender management and treatment program (SOMP) across the state. Petitioners "seek a writ of mandate directing CDCR to amend its regulations to authorize completion of and termination from the sex offender management program prior to discharge from parole." (See Pet. ¶ 6; see also ¶¶ 34-41, 56-61, and Prayer.)

The petition asserts certain CDCR promulgated regulations, in addition to its policies and practices for implementing such regulations, conflict with a controlling statute. Parties are "not required to exhaust administrative remedies" when they "attempt to enforce [an agency's] compliance with . . . controlling statutes," or when the challenged agency action "is based upon a regulation it promulgated." (*United Teachers-L.A. v. Los Angeles Unified School Dist.* (1994) 24 Cal. App. 4th 1510, 1519 n.4; *Sabatasso v. Superior Court* (2008) 167 Cal. App. 4th 791, 795.) While the regulation (Cal. Code Regs., tit. 15, § 3481, subd. (a)) does authorize the claimant to submit a grievance disputing a "policy" of CDCR, Respondent fails to develop an argument the regulation provides an administrative remedy for a challenge to CDCR's promulgated regulations and state-wide implementation of such regulations. Nor does Respondent cite any statutory authority or case law supporting its position.

Petitioners have sufficiently pleaded an excuse from the exhaustion requirement, including lack of adequate administrative remedy.

Petitioners Have Alleged Sufficient Facts to State a Cause of Action for Ordinary Mandate, including a Ministerial Duty

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Respondent contends "[t]here is no factual support for the petitioners' claim that all sex offenders must participate in all aspects of the SOMP [supervision, treatment, and polygraph] for the duration of their statutory parole term." (Memo 12:18-20.) Citing allegations pertaining to the individual Petitioners, Respondent contends "the petitioners' cherry-picked facts do not support their claim that sex offenders are always held to their statutory maximum parole period and required to participate in SOMP for that duration . . . ." (Memo 13:12-14.)

To be sure, Petitioners are not required to provide "factual support" at the pleading stage. "A pleading 'is sufficient if it alleges ultimate rather than evidentiary facts.' " (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1027.)

Petitioners have alleged the following ultimate facts, among others, in support of their traditional writ cause of action:

> [A]s a matter of policy and practice, CDCR does not permit any Registrant to 'complete' the management program prior to discharge from parole, as Section 3008(d) contemplates. Nor does CDCR otherwise allow a Registrant's participation in the management program to be terminated, as Section 3008(d) contemplates. Rather, CDCR and CDCR, as a matter of policy, retain all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense. (Pet. ¶ 34.)

Although not required at the pleading stage, Petitioners have also pleaded certain evidentiary facts. For example, Petitioners allege in the *In re Frederick Dwyer Dwyer* habeas corpus proceeding, the trial court heard testimony from a CDCR regional supervisor reporting it is "essentially the policy of the Department of Corrections that completion of the program is not possible before the discharge from parole program." (Pet. ¶ 39.)[4] The petition also provides information about how all five individual Petitioners have been "retained in the management program indefinitely rather than evaluated for termination from the program, as Section 3008(d) contemplates." (Pet. ¶¶ 43-55.) These ultimate facts and factual allegations are sufficient to state a claim.

Relatedly, Respondent contends Petitioners have not alleged a ministerial duty owed by Respondent and enforceable by mandate. (Memo 14:8-16:12.) Although the argument is not well developed and is unclear, Respondent appears to contend section 3573 of title 15 of the California Code of Regulations (Section 3573) "does not amend, impair, or limit the scope of section 3008(d)(2) as nothing in Penal Code section 3008(d)(2) prohibits nor mandates that the Secretary exercise his discretion in any particular manner." (Memo 15:26-28.) Respondent notes the "regulation does not exempt *any* sex offender parolees from requesting or being granted early discharge from their statutory parole period." (Memo 15:28-16:2.) That a sex offender parolee may request early discharge does not appear to inform on the validity of the regulation.

The petition is partly based on an alleged conflict between Section 3573 and Penal Code section 3008, subdivision (d) (see Pet. ¶ 32), but the petition also alleges "CDCR, ***as a matter of policy***, retain[s] all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense." (Pet. ¶ 34 [emphasis added].) Further, as to Section 3573, the petition alleges "no provision of Section 3573 or any other regulation allows for the 'completion' of the management program. Nor does Section 3573 or any other regulation allow for termination of a Registrant's participation in the management program prior to discharge from parole, as Section 3008(d) contemplates." (Pet.

¶ 32.)

Respondent does not demonstrate Petitioner's allegations concerning Section 3573 are incorrect. Even if Section 3573 does not expressly prevent parolees from "requesting or being granted early discharge from their statutory parole period," as argued by Respondent, the petition sufficiently alleges the regulation is interpreted and implemented by CDCR in a manner that conflicts with Penal Code section 3008, subdivision (d).

"[M]andamus may issue to compel an official both to exercise his or her discretion (if he or she is required by law to do so) and to exercise it under a proper interpretation of the applicable law." (*California Assn. for Health Servs. at Home v. State Dept. of Health Care Servs*. (2012) 204 Cal.App.4th 676, 683; see also Gov. Code, § 11342.2. ["Whenever by the express or implied terms of any statute a state agency has authority to adopt regulations to implement, interpret, make specific or otherwise carry out the provisions of the statute, no regulation adopted is valid or effective unless consistent and not in conflict with the statute and reasonably necessary to effectuate the purpose of the statute."])

Because Petitioners have alleged CDCR's regulations, policies, and practices conflict with the controlling statutes, including Penal Code section 3008, subdivision (d), Petitioners have alleged a cause of action for traditional mandate.

- Petitioners Sufficiently Allege They Lack a Plain, Speedy, and Adequate Remedy in the Ordinary Course of Law

Respondent contends Petitioners have an adequate legal remedy through a petition for writ of habeas corpus "to challenge their parole condition that requires them to participate in the SOMP." (Memo 17:6-7.)

The argument is unpersuasive for at least three reasons. First, it misapprehends the nature of Petitioners' writ claim as a challenge to individual parole conditions, rather than a challenge to Respondent's state-wide regulations, policies, and practices. Second, it ignores applicable case law, which held, in similar circumstances, that "[a] writ of habeas corpus . . . is not available 'in the ordinary course of law'" because it is "an extraordinary remedy." (*Villery v. Department of Corrections & Rehabilitation* (2016) 246 Cal. App. 4th 407, 415-16.) Finally, Respondent does not demonstrate, for purposes of a demurrer, that numerous habeas corpus petitions challenging CDCR's regulations, policies, and practice would be more "speedy" or "adequate" than a single writ petition raising the same claim.

Respondent does not addressed *Villery v. Department of Corrections & Rehabilitation* or Petitioners' other contentions regarding the inadequacy of habeas corpus petitions for the claim made in the petition. (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc., supra,* 111 Cal.App.4th at 1345, fn. 16 [failure to address point is "equivalent to a concession"].)

Petitioners have sufficiently alleged they lack a plain, speedy, and adequate remedy in the ordinary course of law.

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- Demurrer for Uncertainty

Respondent contends "use of the fictitious names John Doe # 1 and John Doe # 2 render the petition uncertain and ambiguous providing additional grounds for the Court to sustain the demurrer." (Memo 13:16-17.)

Demurrers for uncertainty are strictly construed. Discovery can be used for clarification. A demurrer for uncertainty is appropriate only where a defendant cannot reasonably determine what issues or claims are stated. (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) "[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend." (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.)

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Here, even with the use of fictitious names for Petitioner Does 1 and 2, Respondent can reasonably determine the nature of Petitioners' claims. Notably, Petitioners' claims are also based on allegations concerning the *In re Frederick Dwyer* litigation and the other, named individual Petitioners. Further, as discussed earlier, the petition does not seek writ relief as to any individual's parole conditions. Instead, Petitioners challenge Respondent's statewide regulations, policies, and practices. In these circumstances, the use of fictitious names for two of the Petitioners does not render the pleading uncertain as asserted by Respondent.

Respondent has not demonstrated his demurrer for uncertainty should be sustained.

New Reply Arguments

In reply, Respondent admittedly challenges the petition based on entirely new arguments not discussed in his demurrer. Specifically, Respondent contends: (1) Petitioners have not alleged sufficient facts to support a facial challenge to Section 3573 (Reply 3:5-6); (2) the petition allegations are insufficient because they are made on "information and belief" and "Petitioners do not rely on their own circumstances or experience in relation to th[e] alleged [unlawful] policy and practice" (Reply 6:9-11); (3) testimony from the *In re Frederick Dwyer* litigation is insufficient to state a cause of action for mandate (Reply 7:12-14); and (4) Petitioners have not alleged standing to make "as applied" challenges to CDCR's regulations, policies, and practices based on a "hypothetically similar petitioner." (Reply 7:14, fn. 3.)

"The salutary rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before." (*Balboa Ins. Co. v. Aguirre* (1983) 149 Cal.App.3d 1002, 1010; see also *Regency Outdoor Advertising v. Carolina Lances, Inc.* (1995) 31 Cal.App.4th 1323, 1333.)

Respondent does not show good cause to raise new arguments in reply. The reply arguments are legal in nature and could have been raised in the demurrer. Respondent's counsel's meet and confer declaration states that on August 11, 2023 counsel for Respondent and Petitioner discussed "the Secretary's position that claims raised in the petition failed as a matter of law." (Heinisch Decl. ¶ 4.) Nonetheless, there is no explanation for failing to raise the Respondent's reply arguments in the demurrer. Petitioners have not had a full and fair opportunity to respond in writing to the arguments initially raised in Respondent's reply. Under the circumstances, the court declines to consider the new reply arguments summarized above.[5]

Second Cause of Action – Declaratory Relief

Respondent argues "Petitioners' claim for declaratory relief is wholly and entirely dependent on their claim for mandamus relief" and should be sustained. (Memo 17:10-11.) However, as argued by Petitioners, the second cause of action is based on Government Code section 11350, subdivision (a), in the Administrative Procedures Act and, therefore, is not derivative of the writ cause of action.[6] Respondent does not address the argument in reply and thereby concedes it for purposes of this demurrer. (*Sehulster Tunnels/Pre-Con, supra,* 111 Cal.App.4th at 1345, fn. 16.)

CONCLUSION

The demurrer is overruled.

IT IS SO ORDERED.

December 13, 2023

Hon. Mitchell Beckloff

Judge of the Superior Court

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[1] Specifically, Penal Code section 3008, subdivision (d)(2) provides: "(d) On or after July 1, 2012, the parole conditions of a person released on parole for an offense that requires registration pursuant to Sections 290 to 290.023, inclusive, shall include all of the following: . . . (2) Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed."

[2] In reply, Respondent does not specifically defend the arguments he made in his demurrer. Instead, Respondent makes entirely new arguments which is procedurally improper. In a footnote, Respondent states he "does not abandon any arguments raised in the demurrer. Respondent relies on the arguments as presented in the demurrer in addition to those presented in this reply." (Reply 3, fn. 1.) While Respondent may not have "abandoned" any legal arguments for purposes of this proceeding, he has not responded to many, if not all, of Petitioners' opposition arguments concerning the sufficiency of the pleading. (See *Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address point is "equivalent to a concession"].)

[3] The regulation states in part: "A claimant has the ability to submit a written grievance to the department containing one or more claims, subject to the requirements in section 3482, to dispute a policy, decision, action, condition, or omission by the department or departmental staff. . . ." (Cal. Code Regs., tit. 15, § 3482, subd. (a).)

[4] Respondent wholly ignores the *In re Frederick Dwyer* allegations in the demurrer. In reply, Respondent argues the *In re Frederick Dwyer* allegations could only be relevant to a claim of collateral estoppel. (Reply 6:27-7:3.) The court disagrees. Whether the *In re Frederick Dwyer* decision has any collateral estoppel effect, testimony from that action may constitute judicial admissions or otherwise lead to evidence in support of Petitioner's claim. As a result, the ultimate ruling of the San Mateo County Superior Court in *In re Frederick Dwyer* is not determinative here. (See Reply 7:4-14.)

[5] Alternatively, even if the court considers the new reply arguments, the court reaches the same result and overrules the demurrer for the reasons discussed above and in Petitioners' opposition. Given the liberal pleading standard and the allegations that Respondent's regulations, policies, and practices are unlawful, including based on testimony from a CDCR regional supervisor in the *In re Frederick Dwyer* litigation, the reply arguments do not persuade the court that the demurrer should be sustained. Of course, Respondent is not precluded from further developing its arguments for the trial on the writ petition.

[6] Government Code section 11350, subdivision (a) states in pertinent part: "Any interested person may obtain a judicial declaration as to the validity of any regulation or order of repeal by bringing an action for declaratory relief in the superior court in accordance with the Code of Civil Procedure. . . . The regulation or order of repeal may be declared to be invalid for a substantial failure to comply with this chapter. . . ."